Full-Time Support Staff Collective Agreement

Between: College Employer Council (CEC)
(For Colleges of Applied Arts and Technology)

And: Ontario Public Service Employees Union/
Syndicat des Employés de la Fonction Publique
de L'Ontario (OPSEU/SEFPO)
(For Full-Time Support Staff Employees)

Effective From: September 1, 2025
To: August 31, 2028

PROOF/ÉPREUVE
OPSSU

AGREEMENT MADE THIS 15TH DAY OF

OCTOBER 2025 BETWEEN:

COLLEGE EMPLOYER COUNCIL
(hereinafter referred to as the "CEC")
with respect to and on behalf of the
Colleges of Applied Arts and Technology
(hereinafter referred to as the "College" or "Colleges")

and

ONTARIO PUBLIC SERVICE EMPLOYEES UNION / SYNDICAT DES EMPLOYÉS DE LA FONCTION PUBLIQUE DE L'ONTARIO (OPSEU/SEFPO)
(hereinafter referred to as the "Union")

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1. RECOGNITION

1.1 Exclusive Bargaining Agent

The Union is recognized as the exclusive bargaining agent for all Full-Time Support Staff employees of the Colleges, save and except:

- forepersons and supervisors;
- persons above the rank of foreperson or supervisor;
- employees performing duties that require the use of confidential information relating to employee relations and the formulation of the College budget or the Campus budget, as the case may be;
- persons regularly employed for twenty-four (24) hours per week or less;
- students employed on a cooperative educational training program, with a school, college or university;
- graduates of the College employed for up to twelve (12) months following completion of their courses and associated with certification, registration or other licencing requirements;
- persons hired for a project of a non-recurring kind.

1.2 Staffing Considerations

Recognizing that the College reserves the right as provided in Article 3, to determine the number and composition of full-time, part-time, and otherwise excluded positions, and to determine the work assignments that are appropriate in each case, the College will give preference to full-time over part-time assignments, and to convert part-time to full-time assignments where feasible, subject to such operational requirements as may be appropriate.

1.3 Binding on Parties

This Agreement is binding on the parties hereto and the employees as defined in Article 1.1.

1.4 Excluded Persons

Persons who are found to be bargaining unit employees as a result of specific decisions of the Ontario Labour Relations Board or by agreement of the CEC/College and the Union, and whose former status was administrative or excluded staff, shall be governed by this Agreement and Appendix B.

1.5 No Strikes and No Lockouts

The Union agrees there shall be no strike and the CEC agrees there shall be no lockout; "Strike" and "Lockout" being defined in the *Colleges Collective Bargaining Act, 2008*.

1.6 Non-Recurring Projects

An individual may not be maintained in a project of a non-recurring kind for a period of more than twelve (12) continuous months unless there is an extension agreed upon in writing between the Local Union and the College.

2. RELATIONSHIP

2.1 Interference

The Colleges and the Union agree that there will be no intimidation, discrimination, interference, restraint or coercion exercised or practised by either of them or their representatives or members because of an employee's membership or non-membership in the Union or because of their activity or lack of activity in the Union.

2.2 Union Activities

The Union agrees there will be no union activities on the premises of the Colleges, except as specifically referred to in this Agreement or approved in writing by the College.

2.3 Ontario Human Rights

The parties agree that in accordance with the provisions of the *Ontario Human Rights Code* there shall be no discrimination against any employee by the Union or the College because of race, ancestry, place of origin, colour, ethnic origin, citizenship, creed, sex, sexual orientation, gender identity, gender expression, age, record of offences, marital status, family status or disability.

Accommodation, if it is requested by the employee and it is determined to be required, is the duty of the College, the Union and the employee.

2.4 Gender Neutral Language

The Collective Agreement uses gender neutral inclusive pronouns.

2.5 Employment Equity

The College and the Union recognize a shared commitment to achieving employment equity in the College by ensuring that the Local Union is consulted with respect to the appropriate mechanisms created by the College to establish and implement employment equity systems, policies and practices.

3. MANAGEMENT FUNCTIONS

3.1 Union Acknowledgements

The Union acknowledges that it is the exclusive function of the Colleges to:

- maintain order, discipline and efficiency;
- hire, discharge, transfer, classify, assign, appoint, promote, demote, layoff, recall and suspend or otherwise discipline employees subject to the right to lodge a grievance as provided for in this Agreement;
- generally to manage the College and without restricting the generality of the foregoing, the right to plan, direct and control operations, facilities, programs, courses, systems and procedures, direct its personnel, determine complement, organization, methods and the number, location and positions required from time to time, the number and location of campuses and facilities, services to be performed, the scheduling of assignments and work, the extension, limitation, curtailment or cessation of operations and all other rights and responsibilities not specifically modified elsewhere in this Agreement.

The Colleges agree that these functions will be exercised in a manner consistent with the provisions of this Agreement.

4. UNION/MANAGEMENT INTERESTS

4.1 Seniority List

The College shall prepare and send a copy of the seniority list showing the employee's seniority, position title, payband, grand-parented payband(s) (if applicable), department, and home campus once every four (4) months to the Local Union President and the Union Head Office. A copy of the seniority list shall be posted at each Campus of each College and a copy of such seniority list shall be made available for inspection by an employee on request.

4.2 List of Part-Time Employees

In the second week of February, June, and October, the Local Union shall be provided with an electronic list of persons regularly employed for twenty-four (24) hours per week or less, who have been employed continuously for two (2) months or more and persons hired for projects of a non-recurring kind. The College shall supply the list showing the name, start date, anticipated termination date if known, job performed, department, payband, estimated average hours per week, and regular work location, of each such employee.

Within ten (10) days of receipt of the said list, the Local Union may request that it be discussed at a meeting of the Committee constituted under Article 4.6.2. At such a meeting the College shall provide explanations for assigning work on the basis of part-time and full-time assignments, and the nature of any projects of a non-recurring kind for which people were hired in the preceding four (4) months. The College shall consider any representations which the Local Union may make with respect to the assigning of work on a full-time or part-time basis; concerning the feasibility of converting part-time to full-time assignments; and concerning the staffing of positions resulting from projects of a non-recurring kind.

4.3 New Employees

4.3.1 List of New Employees

Once every month, the College shall give to the Local Union President a list of all new employees. This list will include for each new employee their name, position title, payband, department, and home campus, where ordinarily assigned.

4.3.2 Employee Orientation

Where a College has a formal orientation meeting with a group of new employees, the Local Union will be given an opportunity to address the group during the meeting for the purpose of assisting the College in orienting the new employees to the College. Where the College does not have a formal orientation, the College will schedule up to 15 minutes for a Union Local representative to meet with new employees in their first (1st) month of employment for Union Orientation.

4.4 Harassment

4.4.1 Sexual Harassment

The Colleges and the Union are aware of the provisions of the *Ontario Human Rights Code* that provide that persons have the right to be free from a sexual solicitation or advance in the workplace where the person making the solicitation or advance knows or ought to know that it is unwelcome. Both parties subscribe to this principle, and to that end, acknowledge the following objectives:

- a complaint of this nature shall be promptly investigated and, where warranted, appropriate action taken;
- every effort shall be made and maintained by all parties to treat the complaint in a sensitive and confidential fashion, consistent with providing reasonable information to the complainant and the person against whom the complaint is made as to the nature of the allegation, the progress of the complaint, and its resolution or disposition;
- the complaint shall be made to as impartial a person as possible, being the President or their designate and who is not the person against whom the complaint is made.

It is agreed that the complainant may choose a Union representative to assist them in presenting the complaint.

At any point in the procedure the complaint may be referred to the Human Rights Commission.

All colleges shall have and maintain a policy with respect to workplace sexual harassment at the College.

The time limits set out in Article 18 do not apply to complaints under this article, provided that the complaint is made within a reasonable time of the conduct complained of, or having regard to all the circumstances.

4.4.2 Bullying/Psychological Harassment

The College shall make reasonable provisions to ensure that employees have the right to be free from bullying/psychological harassment as defined within this article. The College and the Local Union shall cooperate to the fullest extent possible to ensure the workplace is free from bullying/psychological harassment.

Bullying/psychological harassment refers to any vexatious behaviour that is known, or ought reasonably to be known, to be unwelcome and that:

- takes the form of repeated conduct which could reasonably be regarded as intending to intimidate, offend, degrade or humiliate, and/or
- affects an employee's dignity, or psychological or physical integrity, and/or
- results in a harmful work environment.

Examples of bullying/psychological harassment include, but are not limited to, the following:

- berating/belittling an individual;

- repeated unwarranted criticism;
- undermining or deliberately impeding a person's work;
- spreading malicious rumours or gossip that is not true;
- physical gestures intended to intimidate, offend, degrade or humiliate an individual.

Reasonable action by a College, a manager and/or a supervisor in the course of managing the workplace is not bullying/psychological harassment. Examples of this include, but are not limited to, the following:

- the transfer, demotion, discipline, counsel or dismissal of an employee in a reasonable manner;
- a decision, based on reasonable grounds and facts, not to promote or grant another benefit in connection with an employee's employment or performance.

The parties recognize that bullying/psychological harassment is unacceptable in the workplace, and to that end acknowledge the following objectives:

- a complaint of this nature shall be promptly investigated and, where warranted, appropriate action taken;
- every effort shall be made and maintained by all parties to treat the complaint in a sensitive and confidential fashion, consistent with providing reasonable information to the complainant and the person against whom the complaint is made as to the nature of the allegation, the progress of the complaint, and its resolution or disposition;
- the complaint shall be made to as impartial a person as possible, being the President or their designate and who is not the person against whom the complaint is made;
- frivolous allegations of bullying/psychological harassment that are unfounded, will be treated as a disciplinary offence, that could lead to dismissal;
- allegations found to be true, will be treated as a disciplinary offence that could lead to dismissal.

It is agreed that the complainant may choose a Union representative to assist them in presenting the complaint.

4.5 Work of Personal Nature

Employees shall not be required to do work of a personal nature which is not connected with the operation of the College.

4.6 Union College/Campus Committees

The Union may appoint a Committee at each College composed of up to three (3) members from among employees who have completed the probationary period. At least two (2) of the members of the Committee shall be appointed on a regular basis. The third member may be appointed on an ad hoc basis where their knowledge or experience is relevant to discussion at meetings under this Article. Where a College has another Campus more than thirty (30) km away from the College's main Campus, with at least twenty (20) employees covered by this Agreement employed thereat, the Union may appoint a Union Campus Committee of up to two (2) members from employees on that Campus who have completed their probationary period.

4.6.1 Membership

The President of the Local Union shall head the Union College/Campus Committee where they are located and they shall designate the employee to head the Committee at any other Campus location referred to above. It shall be the responsibility of the Union to supply the College with the names of the members (and head of the Union College and/or Union Campus Committee(s)).

4.6.2 Functions

An equal number of College or Campus officials will meet with the Union College/Campus Committee at a mutually agreed time and place provided that either party request a meeting. Such a meeting shall be held within seven (7) days of receipt of a request unless otherwise agreed upon. Notice of a request for a meeting shall be accompanied by an agenda of matters proposed to be discussed. It is agreed that matters subject to local discussion include:

- the local application of the Agreement including work schedules, workload, and overtime;
- clarification of procedures or conditions causing misunderstanding or grievances including meeting facilities;
- other matters which are mutually agreed upon;
- employment equity programs;
- equity, diversity, and inclusion (EDI) programs;
- employment stability;
- Indigenous commitment

It is agreed that where a meeting as contemplated in this sub-article takes place by mutual consent, during regular working hours, members of the Committee appointed by the Local Union shall not suffer any loss of pay during regular working hours when required to leave their duties temporarily for the purpose of attending such a meeting. The Union acknowledges, however, that the employees have their regular duties to perform and will not absent themselves without first obtaining permission from their immediate supervisor and reporting to their immediate supervisor upon returning to their regular duties. In keeping with this understanding, permission to attend such a meeting shall not be unreasonably withheld consistent with College operating requirements.

4.6.3 Excluded Matters

It is agreed that meetings under this Section shall not concern or entertain matters that are properly the subject of meetings as provided in Articles 18 and 19.

4.7 Employee/Employer Relations Committee

The parties have agreed to the establishment of an Employee/Employer Relations Committee which is currently operating under terms of reference, which may be altered by the parties, from time to time, by mutual agreement.

4.8 Joint Classification Committee

The parties have agreed to the establishment of a Joint Classification Committee which is currently operating under the terms of reference found in Appendix F, which may be altered by the parties, from time to time, by mutual agreement.

4.9 Joint Insurance Committee

The parties have agreed to the establishment of a Joint Insurance Committee which is currently operating under the terms of reference found in Appendix A, which may be altered by the parties, from time to time, by mutual agreement.

4.10 Grievance Scheduling Committee

The parties have agreed to the establishment of a Grievance Scheduling Committee, which is currently operating under terms of reference, which may be altered by the parties, from time to time, by mutual agreement.

5. UNION MATTERS

5.1 Leave of Absence - General

5.1.1 Leaves of Absence Reimbursed by the Union

Leaves of absence with pay may be granted to employees to permit their attendance at conventions, schools and seminars conducted by the Union and to employee(s) who are elected to the Executive Board of the Union, the Divisional Executive or as a mobilizer. The Union shall reimburse the College for all pay during such leaves and the College will endeavour to bill quarterly.

5.1.2 Leave of Absence - Union Representatives

Leave of absence with pay may be granted to:

- employee representatives who attend meetings with College representatives on provincial matters;
- employee representatives who are members of the Employee/Employer Relations Committee, the Joint Insurance Committee (Full-Time Support Staff), Grievance Scheduling Committee, the CAAT Pension Plan and the Joint Classification Committee for the days of necessary attendance at meetings of such committees;

The Union shall reimburse the College for fifty per cent (50%) of all pay during leaves of absence under Article 5.1.2. The College will endeavour to bill quarterly.

5.1.3 Union Negotiating Committee

Leave of absence shall be granted to not more than seven (7) employee representatives selected to negotiate the renewal of the Collective Agreement for necessary time off including travel time, direct negotiating time, and necessary preparation time. The Union shall reimburse the College for all pay during such leave except for the days scheduled by the parties for direct negotiations and up to a maximum of fifteen (15) days if required, for meetings of the Union Negotiating Committee to prepare for and to complete bargaining.

5.1.4 Leaves of Absence - Conditions

Leaves of absence described in Articles 5.1.1 and 5.1.2 shall not be unreasonably withheld, recognizing the need of efficiency of operations of the College. Where possible, the employee will provide at least two (2) weeks' notice to the Senior Human Resources Officer of the absence requested under Articles 5.1.1 and 5.1.2.

5.2 Time Off

In addition to time off granted under Articles 5.1 and 18.2.5, the College recognizes that additional time off during regular working hours may be necessary for the purpose of assisting employees and the Local Union in the administration of the Collective Agreement and the business directly pertinent thereto. In such a case, the Local Union may advise the College of up to three (3) employees who may be appointed or designated hereunder, it being understood that any time off granted shall not hinder or interfere with the regular performance of the employee's duties and responsibilities.

Unless otherwise agreed, time off for Local Union business hereunder shall not exceed:

- a maximum of twelve (12) hours per week, where the Full-Time Support Staff complement at a College is less than two hundred (200) employees, or
- a maximum of fifteen (15) hours per week, where the Full-Time Support Staff complement at a College is two hundred (200) employees or more, but less than three hundred and fifty (350) employees, or
- a maximum of eighteen (18) hours per week, where the Full-Time Support Staff complement at a College is three hundred and fifty (350) or more.
- the Local Union shall reimburse the College for twenty-five per cent (25%) of all pay for any leaves of absence granted hereunder on a regular basis as billed by the College.

5.3 Full-Time Assignment

Upon application in writing by the Union to the CEC with notice to the affected Colleges, a leave of absence shall be granted to two (2) employees from the Full-Time Support Staff Bargaining Unit of the CAAT System elected to full-time positions with the Union. Such leave(s) of absence shall be for a period of one (1) term of office (two (2) years from the date of election) unless extended for a specific period on agreement of the parties. Such leave(s) of absence shall be without pay and benefits, but the employee shall, notwithstanding Article 14.2, accumulate full seniority during such leave(s) of absence.

5.4 Union Deductions

5.4.1 Authorization

There shall be deducted from the regular pay of every employee in the bargaining unit an amount equal to the regular monthly dues as authorized under the by-laws of the Union.

5.4.2 Application

Article 5.4.1 shall have no application to an employee who is successful in satisfying the requirements of Section 13(2) of the *Colleges Collective Bargaining Act, 2008* as to their religious convictions or belief.

5.4.3 Remittance of Dues

Any amounts so deducted shall, subject to Article 5.4.2, be remitted to the Union Head Office. The cheque shall be accompanied by a list of the employees from whom the deductions have been made (a copy of the list shall be sent to the Local Union President) and forwarded by the 15th day of the month following the month in which such deductions have been made. The list

of employees referred to herein shall be in alphabetical order by surname and shall include a unique identifier for the employee.

The Union agrees to indemnify and save the Employer harmless from any liability arising out of the operation of this Article.

5.5 Notices

5.5.1 Accessibility (Notice Boards)

Each College shall supply adequate notice boards in appropriate locations designated by the College and accessible to employees for the posting of Union Notices which have received the prior approval of the College. Their use shall be restricted to Union Notices pertaining to matters relating to employees covered by this Agreement unless otherwise agreed.

5.6 Collective Agreement

5.6.1 Copy of Agreement

Within fourteen (14) days after the signing of this Agreement, the College will post the Agreement on the College website.

5.6.1.1 Newly hired employees

Upon date of hire, the College shall notify the new employee of the name of the employee's Steward or Local Union Officer and provide the link to where they can access the Collective Agreement. Upon request of the new employee, the College shall provide a printed copy of the Collective Agreement.

5.6.1.2 All Employees

All employees shall have access to view and read the Collective Agreement from a College computer.

5.6.2 Printing of Agreement

The cost of printing the Collective Agreement booklets will be shared equally by the CEC and the Union subject to mutual agreement as to format and production arrangements.

5.6.3 French/English Language Versions of Agreement

The parties agree that a French language and an English language version of this Agreement shall be prepared. With respect to any dispute arising at a French language College, the French language version of this Agreement shall prevail. With respect to any dispute arising at an English language College, the English language version of this Agreement shall prevail. With respect to any dispute arising at a bilingual College, the version of the Agreement that will prevail shall be as designated by the grievor.

5.7 Local Union Notification

The Local Union agrees to notify the College of the name(s) of the current Steward(s) and Local Union Officers within a reasonable time of the appointment date.

6. WORK SCHEDULES

6.1 Hours of Work

6.1.1 Normal Work Week

The normal work week for employees will be:

- thirty-five (35) hours per week or seven (7) hours per day,
- thirty-six and one-quarter (36.25) hours per week or seven and one-quarter (7.25) hours per day,
- thirty-seven and one-half (37.50) hours per week or seven and one-half (7.50) hours per day,
- forty (40) hours per week or eight (8) hours per day,

as designated by the College, and scheduled on five (5) consecutive days except with respect to employees engaged in continuous operations or on special shifts.

6.1.2 Retention of Existing Hours of Work

6.1.2.1 Less than Forty (40) Hours per Week

An employee hired prior to September 1, 1997, who as of that date is scheduled to work a normal work week of less than forty (40) hours per week, shall not be scheduled to work a normal work week of forty (40) hours per week while they remain in their current position, unless agreed to by the employee.

6.1.2.2 Forty (40) Hours per Week

An employee hired prior to September 1, 1997 and, who on February 28, 2007 was in one of the following job families and assigned a normal work week of forty (40) hours per week, shall not have their normal work week reduced from forty (40) hours per week as long as they remain in that position:

- Operating Engineer
- Caretaker
- Food Service Worker
- Clerk Supply
- General Maintenance Worker
- Skilled Trades Worker
- Driver
- Bus Driver
- Security Guard.

It is understood that this provision will not apply if the employee is the successful applicant for a position with fewer hours.

6.1.3 Understanding

It is understood that the provisions of this section are intended only to provide a basis for calculating time worked and shall not constitute a guarantee of hours of work per day, or days of work per week or for any period whatsoever. It is understood and agreed that where the normal weekly or daily hours as referred to in Article 6.1.1 above are to be changed, the College shall discuss such changes with the Union College/Campus Committee and hear any representations by it prior to implementation providing such representations are made promptly.

6.1.4 Flexible Hours of Work

Where a College and the Local Union agree and where affected employees approve, the College may implement more flexible hours of work and scheduling arrangements than those provided in Article 6, such as compressed work weeks and job sharing arrangements, except that Article 6.2.1 cannot be varied. Any such variation of any section of Article 6 will be specified in the local agreement. Each agreement shall contain the position title, payband, campus location, shift, names of the employees affected and the agreed-to notice period to terminate the agreement.

Such agreements shall not provide a monetary advantage or disadvantage to the College or to affected employees relative to employees working regular hours. Either party may terminate the local agreement and return to regular schedules or hours of work with eight (8) weeks' notice or as otherwise agreed to between the parties.

Such local agreements shall be signed by the College, the Local Union President, and the employee(s) affected and apply for the specific terms agreed upon, but in any event, shall not continue beyond the term of this Agreement.

6.1.5 Compressed Work Week

The following terms and conditions shall apply when the College decides to implement a compressed work week:

(i) The implementation of a compressed work week shall be considered a major change in shift schedules pursuant to Article 6.2.3. For illustrative purposes only, the normal work week could be 10, 9.5, 9 or 8.75 hours per day scheduled on four (4) consecutive days.

(ii) Overtime will be paid for authorized work performed:
   a. Consisting of a work period of at least one-quarter (.25) hour in a day over the normal daily hours designated by the College; or
   b. Consisting of a cumulative work period of at least one-half (.50) hour over the normal work week as may be designated by the College.

(iii) Shift Premiums
   a. For employees assigned a compressed work week no shift premium shall be payable if the majority of the regular hours worked are before 5:00 p.m.

(iv) Vacation

a. For those employees assigned to a compressed work week, their vacation entitlement would be calculated as follows (for illustrative purposes only):

15	days vacation would convert to	12
17	days vacation would convert to	14
18	days vacation would convert to	14
20	days vacation would convert to	16
21	days vacation would convert to	17
22	days vacation would convert to	18
23	days vacation would convert to	18
24	days vacation would convert to	19
25	days vacation would convert to	20
26	days vacation would convert to	21
27	days vacation would convert to	22
28	days vacation would convert to	22
29	days vacation would convert to	23
30	days vacation would convert to	24

(v) Short-Term Disability

a. For the purpose of 8.1.9.1, employees on a compressed work week will receive eight (8) days at full pay and may accumulate one hundred and four (104) days.
b. Employees moving to and from a compressed work week will have their sick bank converted as follows:
    i. Employees moving to a compressed work week will be credited with 0.8 of their existing sick bank. For example, an employee with a bank of ten (10) sick days, will be credited with eight (8) sick days.
    ii. Employees moving from a compressed work week will be credited with 1.25 of their existing sick bank.
        For example, an employee with a bank of ten (10) sick days will be credited with 12.5 sick days.
c. For the purpose of 8.1.9.2, employees on a compressed work week will receive partial pay for one hundred and four (104) days.

(vi) 15.4.4.1 - Employees on a compressed work week will have four (4) working days.

(vii) Training Assignments

a. When an employee on a compressed work week attends a training program, the College may change the employee's scheduled hours of work to the greater of:
    i. 7.0, 7.25, 7.50 or 8.0 hours per day, as applicable, or
    ii. The actual number of hours spent receiving training for each day that the employee participates in the training program.
b. Where the change prescribed in (a) results in fewer or more hours than the employee was previously scheduled to work on the day(s) in question, the "extra" or "deficit" hours shall be reduced to zero within sixty (60) working days of the completion of the training program, without any loss of pay by the employee or payments by the College, as follows:

i. The employee shall be required to work a corresponding number of hours to make up for any deficit hours; or
ii. The employee shall be scheduled off duty for a corresponding number of hours to offset any extra hours
iii. Where there is mutual agreement, an employee may receive pay at their basic hourly rate for extra hours in lieu of being scheduled off duty

c. Where an employee's extra hours have not been reduced to zero within sixty (60) working days in accordance with Paragraph (b), any such hours remaining to the employee's credit shall be paid at the employee's basic hourly rate.

(viii) As a matter of clarity, there will be no split shifts.

(ix) The College will consult with the Local Union and the affected employees prior to implementation.

(x) Article 6.1.4 shall apply to the compressed work week arrangements set out above.

(xi) All other provisions of the Collective Agreement apply to employees on a compressed work week.

6.1.6 Averaging Hours Worked

6.1.6.1 Union Discussions

Notwithstanding Articles 6.1, 6.2, 6.3, 6.4, 6.6 and 6.7, where a College asserts that one (1) or more employees are or will be engaged on special shifts, and seeks to apply the provisions set out in Appendix C (Averaging of Hours of Work), it shall discuss the matter with the Union College/Campus Committee and hear any representations by it prior to implementation provided such representations are made promptly. Following such discussion, implementation may be effected. Once each year, the Local Union may ask the College to review the arrangement to ensure the conditions outlined in point one (1) of Appendix C continue to apply and if requested, the College shall provide the Local Union with the data used by the College in its review. If those conditions are not applicable, then the Appendix C arrangement will no longer apply. In all other cases, overtime payment will be in accordance with Articles 6.1, 6.2, 6.3, 6.4, 6.6 and 6.7.

6.1.6.2 Retention of Standard Hours

No employee employed as of September 1, 1997, other than a Support Services Officer, Programmer, Programmer/Analyst, Systems Analyst or Technical Support Specialist shall have Appendix C (Averaging of Hours of Work) applied while they remain in their current position, unless agreed to by the employee.

6.2 Shift Schedules

6.2.1 Split Shifts

There shall be no split shifts during the term of this Agreement.

6.2.2 Shift Rotation

Where employees are required to rotate amongst shifts, the College shall endeavour to schedule shifts so that there will be a minimum of fifteen (15) hours, or less if the Local Union and the College agree and the affected employee approves, between the end of the employee's regularly scheduled shift and the commencement of their new shift. Where there is one (1) or two (2) days off between the change of shift, the College shall endeavour to provide for thirty-nine (39) hours and sixty (60) hours, respectively, between the end of the employee's regularly scheduled shift and the commencement of their new shift.

6.2.3 Notice of Shift Change

The College will give at least three (3) weeks' notice with respect to changes in scheduled shifts except in circumstances beyond its control. The College further agrees that where major changes in shift schedules (including new shift schedules) are to be implemented, it will first discuss such changes with the Union College/Campus Committee and hear any representations by it provided such representations are made promptly and will attempt, in any such case, to give at least four (4) weeks' notice.

6.3 Call Back

Where an employee has completed their regularly scheduled hours of work and are subsequently called back to duty before the commencement of their next regularly scheduled shift, the following provisions shall apply.

6.3.1 Return to the Workplace

When an employee is recalled and is required to return to the workplace, they shall receive payment for all hours worked at the applicable overtime rate with a minimum guarantee of four (4) hours overtime at time and one-half their regular rate of pay except to the extent that such period of four (4) hours overlaps or extends into their regular hours of work. It is understood that this provision has no application in cases of change in an employee's regular hours of work or scheduled overtime including overtime commencing immediately following the completion of an employee's regular schedule of work.

6.3.2 Resolving Issues From an Off-site Location

When an employee is recalled and is not required to physically return to the workplace, the applicable overtime rate shall be paid with a minimum guarantee of two (2) hours. The initial call and any subsequent calls during the same two (2) hour period, will be treated as a single recall to work for the purposes of this paragraph.

6.4 On-Call

On-Call refers to time periods during which an employee must be available and able to respond, within a reasonable time, to resolve a problem either by returning to the workplace or off-site (if applicable). On-call applies to time periods that are not regular working hours, overtime, stand-by or call back.

An employee assigned to be on-call is not required to stay at home, but they must make sure that they can be contacted and are able to start work within a reasonable time. It is understood that a return to the workplace may not be necessary in all situations. There shall be no pyramiding of premiums. Where the employee is recalled, the provisions of Article 6.3 shall apply.

No employee shall be required to be on-call or be assigned on-call duty unless authorized in writing by their immediate Supervisor.

An employee assigned to be on-call shall not be paid for the on-call period, or part of the on-call period, if they were not available or were unable to work due to illness or other circumstances beyond their control.

Where the College requires employees to be on-call, qualified employees in the work group shall be selected first on a volunteer basis, in order of seniority, on a rotational basis. Where there are insufficient volunteers, assignment shall be made by reverse order of seniority. However, no employee shall be required to be on-call for more than one hundred and twenty-eight (128) hours per month. Notwithstanding the foregoing, no employee shall be prevented from voluntarily exceeding this maximum. The on-call premium shall be one dollar and seventy-five cents ($1.75) per hour for all on-call hours up to the monthly maximum, and three dollars ($3.00) per hour for an employee who voluntarily exceeds the monthly maximum.

Effective March 1, 2027, the on-call premium shall be two dollars ($2.00) per hour for all on-call hours up to the monthly maximum, and four dollars ($4.00) per hour for an employee who voluntarily exceeds the monthly maximum.

6.5 Work at Home

Where the College requires and assigns the performance of work by an employee at home, it shall be subject to all the provisions of this Article save and except Article 6.7.

6.6 Overtime

6.6.1 Overtime Rate

An employee shall be paid at the overtime rate of time and one-half the employee's hourly rate for authorized work performed:

- consisting of a work period of at least one-quarter hour in a day over the normal daily hours designated by the College of seven (7), seven and one-quarter (7.25), seven and one-half (7.50) or eight (8) for the employees concerned; or
- consisting of a cumulative work period of at least one-half hour over the normal work week of thirty-five (35), thirty-six and one-quarter (36.25), thirty-seven and one-half (37.50) or forty (40) hours per week as may be designated by the College for the employees concerned; or
- on an employee's sixth day of work in the week concerned.

6.6.2 Seventh Day - Double Time

Employees referred to in Article 6.1.1 shall be entitled to payment at the overtime rate of double the employee's hourly rate for all authorized work performed on the employee's seventh day of work in the week concerned.

Employees engaged in continuous operations or on special shifts excluded from Article 6.1.1 shall nevertheless be entitled to payment at the overtime rate of double the employee's hourly rate for all authorized work performed on what amounts to any second day of rest in their schedule provided they have completed their regularly scheduled days of work and performed work on what amounts to any first day of rest in their schedule. Employees who have completed their regularly scheduled days of work but have not performed work on what amounts to any first day of rest in their schedule shall receive time and one-half their hourly rate for authorized work performed on what amounts to any second day of rest in their schedule.

6.6.3 Overtime Pay - No Pyramiding

There shall be no duplication or pyramiding of overtime payment nor shall the same hours worked be counted as part of the normal work week and also as hours for which an overtime premium is payable.

6.6.4 Payment/Lieu Time

Where an employee has worked and accumulated authorized overtime under Article 6 (except overtime hours performed on a holiday defined in Article 10) such employee shall have the option of electing payment at the applicable overtime rate or time off equivalent to the applicable overtime rate. Where the employee elects time off at the applicable overtime rate, such time off must be taken within sixty (60) calendar days of the occurrence of the overtime (unless extended by agreement of the College and the employee) at a time determined by the College and satisfactory to the employee. Where time off in lieu is not taken on the foregoing basis, payment shall be made in accordance with the applicable overtime rate.

6.6.5 Overtime Rights

The parties to this Agreement recognize that College operations may require the performance of overtime work and that employees will co-operate in the performance of such work. The College will advise employees of required overtime as far in advance as practicable and, in any event, will give notice of scheduled overtime required prior to the conclusion of the preceding work day except in circumstances beyond its reasonable control. The Colleges agree to attempt to distribute available overtime work as equitably as practicable amongst qualified employees in the work groups in which overtime work is required. Whether or not advance notice of required overtime has been given, the College shall take into consideration the legitimate requests of employees to be excused where the performance of overtime by such employees would cause undue hardship or serious inconvenience. Employees who have been excused on this basis shall be deemed to have worked such overtime for the purposes of considering equitable distribution. Where an employee claims improper distribution of overtime under these provisions and such claim is either agreed to or determined to be valid, the College's obligation shall be limited to offering such employee the next opportunities to perform scheduled overtime work in their work group that they are qualified and willing to perform until such time as the inequity has been addressed.

6.7 Meal Allowance

Where an employee is required to work more than three (3) continuous hours on completion of their regular shift and has not been given notice of such overtime on the prior day or before, they shall be entitled to a meal allowance not to exceed ten dollars ($10.00).

6.8 Rest Periods

Rest periods and any refreshment facilities required shall be as established from time to time by the College following discussion with the Union College/Campus Committee.

6.9 Communication Outside of Work

It is understood that the College does not expect employees to engage in work-related communications outside of scheduled shifts subject to the requirements of 6.3, 6.4, and 6.6.

7. WAGES

7.1 Wage Rates

The ranges of wage rates are as set out in Appendix E hereto on the effective dates as therein provided.

7.2 Position Description Form

Each employee will be provided with a copy of their current Position Description Form (PDF) upon the date of hire and/or at the employee's request.

7.2.1 Classification Information

Within ten (10) days of receipt of a written request by an employee, the College will provide to the employee, the point rating by factor for their position.

7.2.2 Reclassification

When the College reclassifies a bargaining unit position to another payband, the College will notify the Local Union and provide the position title, name of incumbent, the former payband, the new payband and the effective date of the reclassification.

Upon request by the Local Union, the College shall provide the Position Description Form (PDF) for the reclassified position.

7.3 Progression

7.3.1 Movement Through the Wage Rate Steps

Employees shall progress in accordance with the increments in the paybands as set out in Appendix E based on actual service in the payband.

7.4 Pay Period

The College shall pay employees every two (2) weeks. The College shall endeavour to include payment for overtime worked in the first pay period following the pay period in which the overtime was worked.

7.5 Shift Premium

The College shall pay a shift premium of one dollar and twenty-five cents ($1.25) per hour for all regular hours worked between 5 p.m. and midnight and one dollar and seventy-five cents ($1.75) per hour for all regular hours worked between midnight and 6 a.m. Where more than fifty per cent (50%) of the hours worked on any regular shift fall within a period attracting the higher premium, the higher premium shall be paid for all regular hours worked.

7.6 Lead Hand Premium for Temporary Assignments

7.6.1 Temporary Lead Hand

Where the College determines that it is required, a Lead Hand may be temporarily designated within a work group giving due consideration to the ability, qualifications required for the position and seniority, in making the appointment. Such an assignment shall only be short-term and for a very specific period of time.

7.6.2 Temporary Lead Hand Duties

The temporary Lead Hand does not function as a Supervisor. Typical duties can include:

1. passing Supervisor's instructions to members of the work group, explaining new projects and assignments;

2. allocating work assignments according to established methods and procedures, and establishing priorities as required.

7.6.3 Temporary Lead Hand Premium

Where the College temporarily assigns an employee to Lead Hand responsibilities, the employee shall be entitled to a premium in the amount of seventy-five (75) cents per hour over their current hourly wage for all hours worked during such assignment.

7.6.4 Temporary Lead Hand Premium Limits

The premium shall be payable for all hours worked but shall not form part of the employee's straight time hourly rate for the purposes of overtime or other premium pay.

7.7 Special Allowance

Starting September 1, 2012, on September 1 of each year or in the pay immediately following September 1 of each year**,** full-time bargaining unit members on active payroll with at least six (6) months continuous service but less than ten (10) years continuous service shall receive a payment of four hundred and twenty-five dollars ($425) and full-time bargaining unit members on active payroll with at least ten (10) years continuous service shall receive a payment of eight hundred and twenty-five dollars ($825).

The determination of continuous service shall be governed by Articles 11.2 and 14.2.

7.8 Ongoing Lead Duties

Employees who are assigned "lead" or "coordinator" duties will have such duties reflected in their PDF and evaluated as such.

8. BENEFITS

8.1 Insurance

8.1.1 Life Insurance

8.1.1.1 Basic Life Insurance Plan

During the term of this Agreement, the Colleges shall pay one hundred per cent (100%) of the monthly premiums of the current basic life insurance plan to provide for term insurance coverage of $25,000.00 on the life of the employee and including a rider providing for the same coverage for accidental death or dismemberment.

8.1.1.2 Supplemental Life Insurance Plan

(i) The Colleges will provide supplementary life insurance on a voluntary basis in units of $10,000.00 each to a maximum of five (5) units. The Colleges shall pay sixty per cent (60%) of the monthly premiums and the balance of the premiums will be paid by subscribing employees through payroll deduction.

(ii) Effective November 1, 2014 or such reasonable time thereafter as may be required and subject to eligibility requirements, the Colleges shall continue the Supplemental Life Insurance Plan to provide for the availability of further Supplementary Life Insurance in units of $10,000 to a maximum of $50,000 for employees who elect the maximum option of $50,000 in (i) above, provided the employee pays one hundred percent (100%) of the monthly premium through payroll deduction.

8.1.2 Spousal and Dependent Insurance

Effective during the term of this Agreement, the Colleges shall arrange for Dependent and Spousal Insurance coverage for purchase by employees of $15,000.00 for spouse and $3,000.00 for each child, the premiums to be entirely paid by the employee by payroll deduction, subject to enrolment requirements, if any.

The Colleges will also arrange to have provided spousal supplementary life insurance on a voluntary basis in units of $10,000.00 each to a maximum of six (6) units, subject to enrolment requirements, if any. The employee shall pay one hundred per cent (100%) of the monthly premiums through payroll deduction.

8.1.3 Critical Illness

Effective November 1, 2011 or such reasonable time thereafter as may be required, a Critical Illness Insurance will be made available to employees with the full premiums to be paid by the employees.

8.1.4 Extended Health

The Colleges agree during the term of this Agreement, to contribute one hundred per cent (100%) of the present premiums towards the current Extended Health Benefit Plan subject to the eligibility requirements provided under such Plan.

8.1.5 Dental

The Colleges agree, during the term of this Agreement, to pay one hundred per cent (100%) of the billed premiums of an insured dental plan for coverage of eligible full-time employees on the active payroll who have completed their probationary period. The Plan provides coverage for Basic Services, Endodontics and Periodontics, Restorative Dental and Surgical Procedures and Prosthodontic Services including dentures (Types A, B, C) and the ODA schedule for the immediately preceding year, subject to the eligibility requirements and terms and conditions of the Plan. The maximum for Types A, B, C shall be $2,500.00 per person per plan year.

In addition, the Plan will provide coverage on a non-cosmetic basis for crowns, bridges, implants and dental appliances to be reimbursed at fifty per cent (50%) co-insurance, subject to the eligibility requirements and terms and conditions of the Plan. The maximum for the crowns and bridges coverage (Type E) shall be $2,500 per person per plan year. The coverage for implants and dental appliances is also subject to an open space limitation and subject to a pre-determination approval.

The Colleges will pay one hundred per cent (100%) of the billed premium for an insured dental plan with Orthodontics Procedures with $2,500.00 lifetime maximum per person covered regardless of age and fifty per cent (50%) co-insurance, subject to the eligibility requirements and terms and conditions of the Plan.

Employees may opt out if, in their judgment, they have full coverage through a spouse's Plan. Details of the Plan are published in the revised Group Benefit Plan booklet.

8.1.6 Vision Care

During the term of the Agreement, the Colleges agree to pay seventy-five per cent (75%) of the premiums for a Vision Care Plan providing coverage to a maximum of five hundred and fifty dollars ($550.00) each two (2) years for persons eighteen (18) years of age and over and five hundred and fifty dollars ($550.00) each one (1) year for persons under eighteen (18) years of age for glasses, frames, and contact lenses, subject to eligibility requirements and enrolment requirements, and the balance of the premium shall be deducted by payroll deduction.

8.1.7 Hearing Care

The Colleges agree to pay seventy-five per cent (75%) of the premiums for the Hearing Aid Plan providing coverage to a maximum of three thousand five hundred dollars ($3,500.00) each three (3) years, per person, subject to eligibility requirements and enrolment requirements and the balance of the premiums shall be deducted by payroll deduction.

8.1.8 Survivor Benefits for Active Employees

The Colleges agree to continue coverage of Extended Health (including Vision and Hearing Care) and Dental Plan for the dependent survivor of a deceased employee for six (6) months at no cost to the survivor.

Thereafter, effective November 16, 2000, at the option of the dependent survivor, and subject to Article 8.1.8.1, the College shall continue such benefits until the date that the deceased employee would have reached age sixty-five (65).

At the date that the deceased employee would have reached age sixty-five (65), the dependent survivor may elect to continue those benefits set out in Article 8.1.11, in which the survivor is currently enrolled.

8.1.8.1 Conditions

In order to maintain coverage pursuant to Article 8.1.8, the eligible dependent survivor shall:

i) enroll in the benefit plans as specified by the insurer;

ii) keep the College informed of any change of address or other information as the College or the insurer may require; and

iii) pay, in advance, the full cost of the benefits that the survivor has enrolled in as follows:
   a) current members of the plan will have the option to continue to pay the College quarterly or switch to automatic monthly bank withdrawals;
   b) new enrollees shall pay the College through automatic monthly bank withdrawals.

8.1.9 Short Term Disability

8.1.9.1 Accumulation - Full Pay

During the term of this Agreement, the Colleges will continue the Short Term Disability Income Plan presently in effect, to provide the first ten (10) days at full pay in any one (1) plan year (which begins on September 1 of each year), the details of which are published in the Group Benefit Program booklet, as amended from time to time by the Joint Insurance Committee (JIC).

Employees in their first year of employment will be eligible for benefits under this Plan from their first day of service with the College and will have their ten (10) days entitlement pro-rated in proportion to the amount of the year that they work. In addition, unused days payable at one hundred per cent (100%) in any plan year can be carried forward to provide additional days at one hundred per cent (100%) in future years. Effective September 1, 2000, unused days can only be carried forward to a maximum accumulation of one hundred and thirty (130) days (which includes the initial plan year entitlement plus any "banked" unused days) and may only be used for the purpose of this Article.

Upon retirement, layoff or termination of employment, unused days standing in the name of the employee shall be cancelled and shall be of no effect.

8.1.9.2 Duration of Coverage - Partial Pay

For the duration of coverage the Plan shall provide benefits of seventy-five per cent (75%) of regular earnings for total coverage under the Short Term Disability Income Plan of one hundred and thirty (130) days. An adjustment will be made in a future pay period, when the College's reporting procedures result in an employee receiving full pay for a portion of the period that the employee was entitled to receive seventy-five per cent (75%) of regular earnings.

8.1.9.3 College Paid (STD)

The total cost of the Short Term Disability Income Plan will be paid in full by the Colleges. The Colleges will also establish the normal provisions and limitations as to benefit eligibility and coverage.

8.1.9.4 Use of STD Credits for Family Leave

If a full-time employee is absent from work for the purpose of caring for a member(s) of their immediate family, the employee may apply for leave under Article 12.2. Days withdrawn from the employee's sick leave credits for this purpose will not be counted towards the elimination period for LTD.

8.1.10 Long Term Disability

The Long Term Disability Income Plan shall provide benefits of sixty-six and two-thirds per cent (66 2/3%) of regular earnings. Details of the Plan are published in the revised Group Benefit Program folder.

The Colleges shall contribute seventy-five per cent (75%) of the present premiums towards coverage of eligible employees subject to the payment of the balance of premiums by the employees through payroll deduction and subject to the eligibility requirements provided under such Plan.

The College shall pay one hundred per cent (100%) of the premiums payable for Life Insurance, OHIP, Extended Health, Dental Plan, Vision Care and Hearing Care, on behalf of persons receiving Long Term Disability payments, provided that such persons were subscribing to such benefits on the date the Long Term Disability payments commenced, if the person so desires.

8.1.10.1 Return from Long Term Disability

Where a person who is eligible to receive LTD benefits is medically capable of returning to their former position within twenty-four (24) months of being eligible to receive benefits, the person shall be assigned, within a reasonable period of time, to:

1. their former position, if such position continues to exist, or

2. a comparable position in the same payband to their former position, provided they are capable of performing the job and such a position exists.

When the employee works less than the normal hours of work assigned to the position to which they have returned, their salary, Short Term Disability payments (if entitled) and vacation pay shall be prorated accordingly.

A person shall not be required to return to work within twenty-four (24) months of being eligible to receive LTD benefits unless they are medically capable of performing the duties of their former position.

8.1.11 Retirement Benefits

The Colleges agree to provide eligible retired employees the option of enrolling in the CAAT Retiree Benefit Plan, which includes Life Insurance, Extended Health Care and Dental Care under the following conditions:

1. The retired employee shall pay, in advance, the full cost of the benefits that the retiree has enrolled in as follows:

    a) current members of the plan will have the option to continue to pay the College quarterly or switch to automatic monthly bank withdrawals;
    b) new enrollees shall pay the College through automatic monthly bank withdrawals

2. Eligibility for such coverage shall be dependent upon:

    (i) the employee qualifying for and commencing to receive a lifetime monthly pension from the Colleges of Applied Arts and Technology Pension Plan or the Teachers' Pension Plan immediately upon their retirement;
    (ii) the retired employee electing such coverage within thirty-one (31) days of their retirement date;
    (iii) the retired employee maintaining eligibility for benefits under OHIP or another Canadian medicare plan equivalent to OHIP from another province or territory;
    (iv) for Extended Health Care - the employee commenced retirement on or after October 1, 1989.
    (v) for Life Insurance and Dental Care - the employee commenced retirement on or after November 16, 2000.

3. Insurable benefits payable under OHIP or the Ontario Drug Benefit Plan shall not be payable under the Extended Health Care Plans or Dental Care Plan.

Details of the Plan are published in the CAAT Retiree Benefit Plan booklet.

8.1.12 Survivor Benefits for Retirees

At the option of the dependent survivor of a retired employee and subject to Article 8.1.12.1, they can continue coverage in the CAAT Retiree Benefit Plan, excluding Life Insurance, provided that such benefits were in force at the date of death.

8.1.12.1 Conditions

In order to maintain coverage pursuant to Article 8.1.12, the eligible dependent survivor of a retired employee shall:

i) enroll in the benefit plans as specified by the insurer;

ii) keep the College informed of any change of address or other information as the College or the insurer may require; and

iii) pay the College quarterly in advance the full cost of the benefits that the survivor has enrolled in.

8.1.13 Catastrophic Drug Coverage

Effective March 1, 2018, mandatory employee-paid Catastrophic Drug Coverage (CDC) is available to eligible full-time employees. Eligible prescription drugs will be reimbursed at the plan coinsurance until an out-of-pocket maximum of $2,500 per person has been reached. Once the annual $2,500 out-of-pocket maximum has been reached, reimbursement of eligible prescription drug expenses will be increased to 100%.

8.2 Kilometrage Allowance

Effective August 14, 2006, an employee authorized to use their car on approved College business including travelling to assigned duties away from their normal work location shall be paid kilometrage allowance as follows:

Kilometres Driven	Southern Ontario (cents per km)	Northern Ontario (cents per km)
0 - 4,000 km	40.0	41.0
4,001 - 10,700 km	35.0	36.0
10,701 - 24,000 km	29.0	30.0
More than 24,000 km	24.0	25.0

8.2.1 Special Conditions

The boundary between Northern and Southern Ontario for the purpose of kilometre reimbursement is as follows:

- the District of Muskoka is now considered part of Northern Ontario. Along Highway 400 the District commences north of Port Severn. Along Highway 11 it commences north of Severn Bridge. Between the two communities, the boundary is the Severn River. East of Severn Bridge, the District of Muskoka is located north of Regional Highway 52;
- Highway 60 at Oxtongue Lake easterly to Killaloe Station;
- Highway 62 to Pembroke;

For the purpose of this Article all kilometres outside of Ontario will be at the rates for Southern Ontario. Should the kilometrage rates payable to Bargaining Unit employees covered under the Collective Agreement between Management Board of Cabinet and OPSEU/SEFPO relating to Ontario Public Servants be amended in any way during the term of this Agreement, such amendments shall apply to Article 8.2 above, if applicable, on the same effective date.

8.3 Liability

Effective during the term of the Agreement, each College shall provide for liability coverage of employee's liability while performing duties or tasks required and authorized by the College or customarily performed as part of the employee's duties.

8.4 Ontario Health Insurance Plan

The parties recognize that the method of funding OHIP has been changed from an individually paid premium to a system funded by an employer paid payroll tax.

If the government, at any time in the future, reverts to an individually paid premium for health insurance, the parties agree that the Colleges will resume paying 100% of the billed premium for employees.

8.5 Pamphlets/Booklets

The Colleges shall make available to employees, on a reasonable basis, explanatory pamphlets and/or booklets, in such form as the Colleges may determine, relating to the following:

- Life Insurance (including Supplemental Life);
- Ontario Health Insurance Plan;
- Short Term Disability;
- Long Term Disability;
- Extended Health Benefits;
- Dental Plan;
- Pension Plan;
- Liability Insurance;
- Vision Care Plan;
- Hearing Care Plan.

9. EDUCATION

9.1 Reimbursement for Tuition

Employees who successfully complete educational courses with the prior approval of the College, either at the College or another educational setting, will be reimbursed by the College for all or part of the tuition fees paid by the employee.

9.2 Maintenance of Salary

An employee absent from work during regular working hours for the purposes of attending courses directly or indirectly related to their work and in which the College has directed or approved their participation shall not suffer any loss of pay with respect to their regular straight time hourly earnings during the period of any such absences.

9.3 Developmental Leave

9.3.1 Purpose and Length of Leave

The College recognizes that it is in the interests of employees and the College that employees be given the opportunity by the College to pursue developmental activities to further academic or technical skills where such activities will enhance the ability of the employee upon return to employment with the College. A leave application should normally be for between one (1) to twelve (12) months.

9.3.2 Criteria

Employees who have completed six (6) years of service with the College may apply. The College may consider: the benefit to the College and to the employee of the leave; whether a suitable substitute for the employee is available; length of the leave; and the frequency and duration of prior developmental leaves granted to the employee. Approval of the time off for developmental purposes shall not be unreasonably denied.

9.3.3 Application

Applications for developmental leave will be submitted in writing to the College at least six (6) months prior to the proposed commencement date, containing a detailed statement of the nature of the proposed leave and its perceived benefit to the College and to the employee.

9.3.4 Response to Application

All applicants will be notified in writing as to the disposition of their application for developmental leave. An applicant who is denied leave shall be notified in writing of the reasons for the denial.

9.3.5 Method of Payment

It is clearly understood that the College may grant developmental leave with pay, without pay, or in some combination thereof, at its sole discretion.

The employee, upon termination of the developmental leave, will return to the College for a period of at least one (1) year, failing which the employee shall repay to the College salaries or fringe benefits received, if any, by the employee while on developmental leave.

9.3.6 Assignment on Return

On return from leave, a participant will, subject to the application of the layoff and displacement provisions of this Agreement during the period of leave, be assigned to the position they held prior to the leave. If the layoff and displacement provisions of the Agreement have application during the leave, they shall apply to the employee in the same manner during the leave, except that notice to the employee may be given to an Officer of the Local Union and any election the employee may make under such provisions may be made on their behalf by an Officer of the Local Union.

9.4 Tuition Fees

An employee in the bargaining unit may take, for a fee of twenty dollars ($20.00) per course plus the cost of required course materials, on the employee's own time:

(a) approved programs or courses, with regulated tuition fees; or,
(b) other courses or programs as are mutually agreed,

which the College currently offers. The employee must meet the College entrance and admission requirements and is subject to academic policies.

9.5 Professional Development Days

Each employee will be entitled to take up to three (3) paid professional development days per year. Such leave shall be used to enhance the employee's transferable job skills and can include such activities as attending seminars, participating in College staff development activities, job shadowing, and other legitimate training and education activities.

The employee will submit a written application to their Supervisor outlining the purpose of the professional development and the expected skill enhancement contemplated from the activity. Such requests will not be unreasonably denied.

10. HOLIDAYS

10.1 Entitlement

An employee who has completed thirty (30) calendar days of continuous service will receive their regular rate of pay for their normal scheduled hours (up to a maximum of eight (8)) for the holidays set out following. It is understood, however, that employees who, as of the date of observance of any of the holidays have not yet completed thirty (30) calendar days of continuous service but subsequently successfully complete thirty (30) calendar days of continuous service shall nevertheless be entitled to holiday pay in accordance with the provisions herein: Family Day, Good Friday, Victoria Day, Canada Day, Civic Holiday, Labour Day, Thanksgiving Day.

10.2 Holiday December 25 - January 1

In addition, eligible employees shall be granted the holiday period December 25 to January 1 inclusive without loss of straight time hourly earnings for regular hours scheduled during such period.

10.3 Restriction

In order to qualify for payment of the holiday concerned, the employee must work the full scheduled hours of work on the work day immediately before the holiday and the full scheduled hours of work on the work day immediately following the holidays or holiday period unless absent for all or part of such days for reasons satisfactory to the College.

10.4 Substitution

When a holiday or holidays as defined in Article 10.1 falls on a Saturday or Sunday the College shall designate the preceding Friday and/or Monday following as a substitute day off with pay except with respect to employees on other than a regular Monday to Friday schedule.

10.5 Working on Holidays

Authorized work performed on a holiday or during the holiday period as defined in Article 10.1 and Article 10.2 (or on the day designated as such under Article 10.4) shall be paid at time and one-half for all hours worked. In addition, the employee shall be entitled to holiday pay in accordance with Article 10.1 and Article 10.2 and subject to Article 10.3.

10.6 Employees on Other than Monday to Friday Schedule

An employee whose regular schedule is other than Monday to Friday shall be entitled to a lieu day off where a holiday as defined in Article 10.1 falls on their regular day off. Where such holiday falls on a regularly scheduled working day and the employee is required to work, such that the employee works more than fifty per cent (50%) of their normal daily hours on that day, they shall be paid in accordance with Article 10.5, or, if they so elect, they shall receive time and one-half for all hours worked and in addition, a lieu day off with pay. Where the employee is entitled to a lieu day or elects for a lieu day, such day shall be designated by the College at a time satisfactory to the employee and acceptable to the College.

10.7 Holiday During Vacation

When a holiday falls within an employee's vacation period, their vacation shall be extended by one (1) day either at the beginning or end of this vacation unless the employee requests a lieu day off which is on a date satisfactory to the College.

11. VACATION

11.1 Entitlement

Effective June 30, 1991, employees on the active payroll of the College who have completed the years of continuous service specified, as of June 30th, shall be granted vacation with pay as follows:

1 - 6 years:	15 working days
7 years:	17 working days
8 years:	18 working days
9 years:	20 working days
10 years:	20 working days
11 years:	21 working days
12 years:	22 working days
13 years:	23 working days
14 years:	24 working days
15 years:	25 working days
16 years:	26 working days
17 years:	26 working days
18 years:	26 working days
19 years:	27 working days
20 years:	27 working days
21 years:	28 working days
22 years:	28 working days
23 years:	29 working days
24 years:	29 working days
25 or more:	30 working days

11.2 Calculation of Continuous Service

In determining the period of continuous service of employees on the active payroll for the purpose of vacation entitlement and Article 7.7 Special Allowance:

- only an employee's service in the bargaining unit shall apply, however an employee's previous uninterrupted service with the College immediately prior to and consecutive with its establishment as a College of Applied Arts and Technology shall be included;
- an employee who, for any reason, has less than twelve (12) full months of active employment during the one (1) year period immediately prior to June 30, in any year, shall receive a lesser vacation with pay on a pro rata basis under the schedule of vacation set out in this Article, subject to any accumulation of service under Article 14.2.

Active employment means actual attendance at the work place and the performance of work, but includes absence from work for vacations and holidays, or illness for up to six (6) months, or during pregnancy or parental leave or developmental leave.

11.3 Vacation Pay

Vacation pay shall be computed on the basis of the employee's regular wages based on their normal hours of work. The pay which an employee would normally receive during their vacation period shall be paid prior to such vacation providing the employee makes a written request to the Human Resources Office (or such other office as may be designated by the College concerned) at least fifteen (15) days prior to the commencement of such vacation.

11.4 Pro-Rating

An employee whose employment is terminated subsequent to June 30, in any year, shall receive a lesser vacation pay pro-rated in accordance with the schedule of vacations set out in this Article. Any shortfall will be deducted from an employee's last pay.

11.5 Scheduling Vacation

Vacation shall be as scheduled by the College. Employees shall be entitled to at least three (3) consecutive weeks of vacation, unless otherwise agreed. Employees shall indicate their preference, if any, as to vacation dates no later than March 1 of the current vacation year for the next vacation year (July 1 to June 30). The College shall confirm or deny, in writing, such vacation requests by March 15.

The College may, however, schedule vacations at any time and will consider requests by employees, including requests for vacation in the months of May through August, consistent with the College staffing requirements.

Employee requests for vacation will not be unreasonably denied.

Where in scheduling vacations in accordance with the foregoing, conflicts arise amongst employees as to their choice of vacation times, consideration shall be given to the respective length of service of such employees and staffing requirements in the final determination of vacation schedules, providing they have indicated a vacation preference prior to March 1 in the current vacation year. Vacation requests received after March 1 will be confirmed or denied, in writing, within two (2) weeks of receipt of same.

If an employee is given in-patient treatment in a hospital during one (1) or more full days of the employee's vacation, those days may, at the request of the employee, be rescheduled during the vacation year, at a time convenient to the College.

11.6 Carry-Over

Recognizing the needs of the College and the desires of employees, an employee may carry over up to three (3) weeks of vacation to the immediately subsequent vacation year consistent with efficient staffing requirements and subject to agreement on scheduling of the carry-over week(s) in the following vacation year at a time satisfactory to the College. Where the College is unable to schedule an employee’s vacation, the employee may carry over all unused vacation days, which will be scheduled by the College in the following vacation year.

If an employee requests that vacation days be rescheduled as a result of in-patient treatment in a hospital and the College is unable to reschedule in that vacation year, then upon written request to the College, the employee may carry over these days in excess of the maximum.

12. LEAVES

12.1 Personal Leave Without Pay

Leave of absence without pay may be granted by the College for legitimate personal reasons.

12.2 Personal Leave With Pay

Both parties to this Agreement recognize the over-riding professional responsibility to the students. Leaves of absence as provided in this Article will therefore be scheduled where possible to ensure a minimum of disruption to the educational programs and services of the College. Reasonable notice shall be given to the supervisor concerned. It is understood that leaves under Article 12, Leaves of Absence, or under Article 8.1.9, Short-Term Disability Plan (STD), that are for the purpose of dealing with the death, illness, injury, or medical emergency of a person referred to in 12.3 or are for personal illness, injury, or medical emergency should be credited towards the emergency leave provisions of the *Employment Standards Act, 2000.*

12.2.1 Religious Leave

Leaves of absence for religious leave may be granted at the discretion of the College, in accordance with existing human rights standards regarding accommodations, without loss of regular salary. Where leave of absence for religious reasons is denied, reasons shall be given in writing to the applicant where requested.

12.2.2 Family Leave

In each year, the College shall grant to each employee up to five days of leave to care for members of the employee's immediate family when they are ill. Time off can be taken in a minimum of half day increments.

12.2.3 Family Leave Eligibility

For the purpose of 12.2.2, an employee's immediate family shall mean the employee's spouse (or common-law spouse residing with the employee), children (including children of legal or common-law spouse), and parents (including step-parents or foster parents).

12.2.4 Family Leave Unpaid

Except as provided in 12.2.5 leave pursuant to 12.2.2 shall be without pay.

12.2.5 Short Term Disability Application

The employee may apply for benefits under the Short-Term Disability Plan as described in Article 8 with respect to the day or days of leave taken under 12.2.2. All the terms of Article 8.1.9, Short-Term Disability Plan, shall apply to the period of leave as if such period was an illness of the employee.

12.3 Bereavement Leave

On the death of an employee's parent, spouse (or common law spouse), child, stepchild, sibling, parent-in-law, sibling-in-law, child-in-law, grandparent, chosen family, spouse's grandparent, grandchild or guardian, the employee shall be granted leave of absence of three (3) or more days without loss of pay in order to attend at or make arrangements for the funeral, the duration of the leave to be at the discretion of the College. Such leave shall not be unreasonably denied.

On the death of the sibling of an employee's parent, or the child of an employee's sibling, an employee, upon request, shall be granted a leave of absence of one (1) day without loss of pay in order to attend the funeral.

Note: For the purposes of Article 12.3, chosen family refers to important and established non-biological kinship bonds.

12.4 Jury/Witness Duty

An employee who is called for jury duty or who is subpoenaed as a Crown witness or witness in another proceeding which requires their attendance as a matter of civic or public duty, will receive for each day of absence from work therefor, the difference between pay lost (computed at the employee's hourly rate for the number of normal hours the employee would otherwise have worked exclusive of overtime and other forms of premium pay) and the amount of jury fee or witness fee received, provided the employee furnishes the College with a Certificate of Service signed by the Clerk of the Court, showing the amount of fee received.

12.5 Citizenship Leave

An employee shall be granted leave of absence without loss of regular earnings for any necessary time spent during regular working hours for the purpose of attendances to acquire their Canadian Citizenship papers. Such leave(s) of absence shall not, in total, exceed the equivalent of two (2) shifts and the College may require evidence of any necessary attendances during the regular working hours.

12.6 Pregnancy and Parental Leave

12.6.1 Pregnancy Leave

A pregnant employee who has been employed for at least thirteen (13) weeks before the expected date of delivery shall be entitled to seventeen (17) weeks pregnancy leave of absence without pay, for the purpose of childbirth, or such other longer or shorter period of pregnancy leave as is required to be granted under the *Employment Standards Act, 2000.* The leave of absence shall be in accordance with the pregnancy leave provisions of the *Employment Standards Act* , *2000*.

12.6.2 Parental Leave

An employee on pregnancy leave may take a further thirty-five (35) weeks parental leave of absence without pay, or such other longer or shorter period of parental leave as is required to be granted under the *Employment Standards Act, 2000,* provided the employee applies in

writing two (2) weeks prior to the expiry of their pregnancy leave. Such leave shall be in accordance with the parental leave provisions of the *Employment Standards Act*, *2000*.

A leave of absence of up to thirty-seven (37) weeks or such other longer or shorter period of parental leave as is required to be granted under the *Employment Standards Act, 2000,* is available to any new parent who has been employed for at least thirteen (13) weeks. Such leave shall be pursuant to the provisions of the *Employment Standards Act*, *2000.* Parent includes a person with whom a child is placed for adoption and a person who is in a relationship of some permanence with a child.

12.6.3 Extension of Parental Leave for Adoption

The College, in considering any request for an extension in adoption leave in excess of that provided under Article 12.6.2, shall give consideration to any medical or other relevant conditions required by the local adoption agency. This request for a leave without pay should be made, in writing, a minimum of two (2) weeks prior to the expiry of the leave in Article 12.6.2.

12.6.4 Seniority Accumulation

Employees on pregnancy or parental leave shall continue to accumulate seniority for the duration of their leaves.

12.6.5 Supplementary Unemployment Benefit Plan

12.6.5.1 Eligibility for Benefit

An employee entitled to pregnancy and/or parental leave under Article 12.6, who provides the College with proof that the employee has applied for and is eligible to receive Employment Insurance (EI) benefits pursuant to Sections 22 or 23, *Employment Insurance Act*, S.C. 1996, c.23, as amended from time to time, shall be paid a top-up, an allowance in accordance with the Supplementary Unemployment Benefit Plan.

12.6.5.2 Payment

Payments made according to the Supplementary Unemployment Benefit Plan will consist of the following:

(i) for the waiting period of the first leave taken under Article 12.6.1 and/or 12.6.2, as applicable, during which the employee is serving the *Employment Insurance* waiting period, a payment equivalent to ninety-three percent (93%) of the actual rate of pay for their position which the employee was receiving on the last day worked prior to the commencement of the leave;

and,

(ii) for up to a maximum of 51 additional weeks while the employee is on pregnancy and/or parental leave, and provided the employee is eligible to receive Employment Insurance (EI) benefits pursuant to Sections 22 or 23, *Employment Insurance Act*, S.C. 1996, c.23, as amended from time to time, or was eligible to receive such EI benefits but has

received the maximum number of weeks payable, payments equivalent to the difference between the sum of the weekly EI benefits the employee is eligible to receive and any other earnings received by the employee, and ninety-three percent (93%) of the actual rate of pay for their position which the employee was receiving on the last day worked prior to the commencement of the leave. The weekly top-up payment will be calculated using the weekly EI benefit that would be payable to the employee (i.e. 55%) without regard to any election by the employee to receive a lower EI benefit spread over a longer period of time as may be permitted under the *Employment Insurance Act.*

12.6.5.3 Compliance with *Employment Insurance Act*

Notwithstanding Article 12.6.5.1 and 12.6.5.2, the terms of this plan will be construed so that it complies with Regulation 37(2) of the E.I. Act.

In no event will the top-up payment exceed the difference between 93% of the employee's actual weekly rate of pay that the employee was receiving on the last day worked prior to the commencement of the leave and the sum of the employee's EI benefit calculated without regard to an election by the employee to receive a lower EI benefit spread over a longer period of time as may be permitted under the *Employment Insurance Act* and any other earnings received by the employee.

The employees have no vested right to payments under the plan except to payments during a period of unemployment specified in the plan. (Reference: 37(2)(h) E.I. Regulations).

Payments in respect of guaranteed annual remuneration or in respect of deferred remuneration or severance pay benefits are not reduced or increased by payments received under the plan. (Reference: 37(2)(i) E.I. Regulations).

12.6.5.4 Transfer

Where an employee has been transferred to a different position pursuant to Article 13.4.1, the SUB Plan payments will be based on the actual rate of pay for the position they worked in prior to the transfer.

12.7 Prepaid Leave Plan

12.7.1 Purpose

The Prepaid Leave Plan has been developed to afford employees in the bargaining unit the opportunity of taking a leave of absence of between six (6) months and one (1) year and to finance the leave through deferral of wages in an appropriate amount which will be accumulated and together with interest, be paid out at the commencement of the leave.

12.7.2 Eligibility

Any employee in the bargaining unit having three (3) years seniority with the College is eligible to participate in the Plan in accordance with the conditions set out in this Article.

12.7.2.1 Application

An employee who qualifies as above must make written application to the President of the College or designate at least three (3) months in advance of the proposed commencement date of participation in the Plan, requesting permission to participate in the Plan setting out the deferral program as requested.

12.7.2.2 Approval

Approval of individual requests to participate in the Plan, the duration of the leave, the deferral period, and the percentage of wages deferred shall rest solely with the College.

12.7.2.3 Deferral

The deferral period over which wages are deferred shall be to a maximum of five (5) years.

12.7.2.4 Leave

The length of the leave shall not exceed one (1) year.

12.7.2.5 Written Agreement

The College and the employee shall enter into a written agreement setting out the terms of the Plan agreed to in compliance with the conditions herein.

12.7.3 Terms and Conditions

The payment of wages and benefits, and other terms and conditions, shall be as follows:

12.7.3.1 Wages

During the deferral period, preceding the leave, the employee will be paid a reduced percentage, in accordance with the written agreement between the College and the employee, of their wages as set out in Appendix E. The remaining percentage of their wages will be deferred and this accumulated amount plus any interest earned shall be retained for the participant by the College to finance the period of leave.

The percentage deferred shall not exceed an amount determined by dividing the length of the period of leave by the sum of the length of the deferral period and the length of the period of leave and multiplying by 100 (e.g., if length of deferral period = 4 years and length of leave = 1 year, then maximum deferred salary = 20 per cent), but under no circumstances shall the amount deferred exceed the maximum specified in the Canada Revenue Agency directives.

12.7.3.2 Interest Rate

The calculation of interest under terms of this Plan shall be monthly (not in advance). The interest paid shall be calculated by averaging the interest rates in effect on the last day of each month for a true savings account, a one (1) year term deposit, a three (3) year term deposit, and a five (5) year term deposit. The rates for each of the accounts identified will be those set out in writing by the bank branch with which the College deals. If at the last day of any given month the appropriate bank is not marketing one or more of the above listed products, the remaining products will be averaged.

Interest, calculated as above, shall be applied on a monthly basis, the first credit to be the month following the initial deposit. A yearly statement of the amount standing to the participant's credit will be sent to the participant by the College.

12.7.3.3 Deferral Period (Benefits Structuring)

During the deferral period, any benefits related to the rate of wages shall be structured according to the wages the participant would have received during the deferral period had they not been in the Plan.

12.7.3.4 Employee Benefit Coverage & Premiums

A participant's coverage for Life Insurance, OHIP, LTD, Extended Health, Dental, Vision, and Hearing Care Plans coverage, in effect immediately prior to the leave, will be maintained by the College during their leave of absence, if eligibility conditions permit; however, the premium costs of all such Plans shall be paid by the participant during leave.

12.7.3.5 Leave Period (Benefits Structuring)

During the leave period, any benefits related to the rate of wages shall be structured according to the rate of wages the participant would have received immediately prior to the leave had they not been in the Plan.

12.7.3.6 Payout

At the commencement of the period of leave, the College shall pay to the participant the moneys standing to their credit less any premiums or contributions deducted for the year, except as may otherwise be mutually agreed, it being understood that interest is not earned for the period of leave.

12.7.3.7 Assignment on Return

On return from leave, a participant will, subject to the application of the layoff and displacement provisions of this Agreement during the period of leave, be assigned to the position they held prior to the leave. If the layoff and displacement provisions of the Agreement have application during the leave, they shall apply to the employee in the same manner during the leave, except that notice to the employee may be given to an Officer of the Local Union and any election the employee may make under such provisions may be made on their behalf by an Officer of the Local Union.

12.7.3.8 Applicability of Benefits

Short Term and Long Term Disability benefits shall not be available during the leave, nor shall vacation be taken during the leave, nor shall vacation credits accumulate during the leave. However, seniority shall accumulate for the entire period of leave, and service for the purpose of otherwise determining the level of vacation entitlement shall include the period of leave. Notwithstanding Article 11.6 a participant may, in the year or years prior to the leave, defer sufficient vacation credit so that, in the vacation year of their return to work, they will have up to their normal vacation entitlement.

12.7.3.9 Withdrawal Rights

A participant may, with the approval of the College, withdraw from the Plan in unusual or extenuating circumstances (e.g., financial hardship or serious illness). Requests for withdrawal must be submitted in writing, detailing the reason(s) for withdrawal before three (3) months prior to commencement of the leave. The College shall maintain the request and its approval as a part of College records.

When a request for withdrawal is approved, the College shall pay to the employee a lump sum amount equal to moneys deferred plus interest accrued to the date of withdrawal from the Plan. Payment shall be made as soon as possible, but must be made within thirty (30) days of approval of withdrawal from the Plan.

12.7.3.10 Leave Postponement

The College may, for good and sufficient reason, up to three (3) months prior to commencement of the leave, postpone the period of the leave for not longer than one (1) year. In this instance, a participant may choose to remain in the Plan, or receive payment as in Article 12.7.3.9 above.

The participant may, for good and sufficient reason, request in writing that the leave period be postponed. The College may, at its discretion, grant a postponement, but under no circumstances shall the postponement exceed one (1) year.

12.7.3.11 Interest Accumulation

Should Article 12.7.3.10 result in a leave of absence being taken later than the intended period, any moneys accumulated until the intended commencement date will continue to accumulate interest until the leave is granted.

12.7.3.12 On Leaving Employment

Any participant who resigns, is laid off or otherwise terminated prior to commencement of the leave shall cease to be a participant in the Plan, and shall receive payment as in Article 12.7.3.9 above.

12.7.3.13 Death Clause

Should a participant die while enrolled in the Plan, any moneys accumulated, plus interest accrued at the date of death, will be paid to their estate. Every agreement entered into under Article 12.7.2.5 shall state that moneys paid to the estate of an employee under this section are a "right or thing" within the meaning of the *Income Tax Act* and shall be taxable as income in the year of the employee's death in accordance with the *Income Tax Act.*

12.7.3.14 Serious Illness

Should a participant be unable to take the leave when scheduled because of serious injury or illness occurring before commencement of the leave, they may cancel the leave and receive payment as in Article 12.7.3.9 or, with the consent of the College, defer the leave to a time mutually agreeable, not to exceed one (1) year.

12.7.4 Income Tax

During each taxation year, the participating employee's income tax liability shall be in accordance with the *Income Tax Act* and directives from Canada Revenue Agency. Similarly, the withholding tax deducted at source by the College shall be in accordance with the *Income Tax Act* and directives from Canada Revenue Agency.

12.8 Domestic or Sexual Violence Leave

An employee shall be granted a leave of absence if the employee or a child of the employee experiences domestic or sexual violence, or the threat of domestic or sexual violence, and the leave of absence is taken for any of the following purposes:

1. To seek medical attention for the employee or the child of the employee in respect of a physical or psychological injury or disability caused by the domestic or sexual violence.

2. To obtain services from a victim services organization for the employee or the child of the employee.

3. To obtain psychological or other professional counselling for the employee or the child of the employee.

4. To relocate temporarily or permanently.

5. To seek legal or law enforcement assistance, including preparing for or participating in any civil or criminal legal proceeding related to or resulting from the domestic or sexual violence.

Pursuant to the *Employment Standards Act, 2000,* the first five (5) days of the leave in each calendar year will be paid days by the College. The days may be taken intermittently or in one continuous period. The employee may be granted additional paid leave at the discretion of the College.

The College agrees that an employee who is the subject of domestic or sexual violence will not be subject to discipline if the absence or performance issue can be linked to the domestic or sexual violence.

Section 49.7 of the *Employment Standards Act, 2000* continues to apply.

Should the *Employment Standards Act, 2000* change and this provision be removed, or reduced, the College shall maintain the current level outlined above.

13. HEALTH AND SAFETY

13.1 Health and Safety Act

The parties acknowledge the application of the *Occupational Health and Safety Act*.

13.2 Provision of Clothing

The current practices relating to the supply and maintenance of clothing or uniforms for employees shall continue during the term of this Agreement subject to any changes which shall be the subject of prior discussion between the College and the Union College/Campus Committee.

13.2.1 Safety Devices

The College will reimburse an employee for the cost of certain types of protective devices, as follows:

13.2.1.1 Footwear

Where an employee is required by the College or by legislation, in order to perform their duties, to acquire and wear protective footwear, the employee shall provide the College with proof of purchase by March 1 each year and the College shall reimburse such employee, on the first pay day in April in each year, up to a maximum of one hundred and seventy-five dollars ($175.00).

In situations other than the foregoing, the College may, in its discretion, (which discretion shall not be unreasonably exercised) reimburse such expense where it is recommended by the health and safety committee constituted under the *Occupational Health and Safety Act*.

13.2.1.2 Eye Protection

Where an employee is required by the College or by legislation, in order to perform their duties, to acquire and wear prescription eye protection, the employee shall provide the College with proof of purchase by March 1 each year and the College shall reimburse to such employee, on the first pay day of April in each year, up to a maximum of thirty dollars ($30.00); in situations other than the foregoing, the College, may in its discretion, (which discretion shall not be unreasonably exercised) reimburse such expense where it is recommended by the health and safety committee constituted under the *Occupational Health and Safety Act*.

13.2.2 Other Equipment Required by the *Occupational Health and Safety Act*

Where legislation requires specific safety equipment for an employee to perform their duties, the College shall provide such equipment at no cost to the employee. Specific eligibility issues shall be resolved by the Health and Safety Committee constituted under the *Occupational Health and Safety Act.*

13.3 Prior Arrangements

Where, as a result of local practice, at an individual College, employees have, in the opinion of the Local Union, received benefits superior to those provided in Article 13.2.1, such practice shall continue, for the duration of this Agreement, in lieu of the provisions of Article 13.2.1 at the election of the Local Union. The Local Union shall give notice of such election to the College, within sixty (60) days of ratification. In the event of default of such notice, the provisions of Article 13.2.1 shall apply.

13.4 Video Display Terminals

The parties agree to the following terms respecting the use of video display terminals (VDT's) by employees:

13.4.1 Pregnancy (Transfer)

- an employee who is assigned to operate a VDT as part of their duties, who believes that they may be pregnant, shall, at their request, be assigned duties that do not include the operation of a VDT for up to twenty (20) working days or until the status of their pregnancy is confirmed, whichever is sooner; their hourly rate of pay shall be maintained for such period;
- an employee who is assigned to operate a VDT as part of their duties and who is pregnant (as certified by a medical practitioner) shall, at their request be assigned duties that do not include the operation of a VDT for the duration of their pregnancy. In such a case, the College may transfer the employee to another position for the duration of the pregnancy, and the employee shall be paid the rate of pay of the position to which they are transferred. The College will endeavour to minimize loss to the employee by attempting to locate a vacancy for which the employee is qualified. Such a vacancy should have a wage rate reasonably close to that of the employee's own position. Where more than one (1) vacancy exists for which the employee is fully qualified to perform the work without training, the College, if it transfers the employee, will assign the employee to the vacancy in the position having the maximum rate closest to, but not exceeding, the maximum rate of the employee's own payband.
- where a pregnant employee working within a one-metre radius of a VDT requests to have their work station moved outside the one-metre radius, the College will endeavour to accommodate that request.

13.4.2 Eye Examinations

Employees classified as Microcomputer Operators or Data Entry Operators who regularly use a VDT and such other employees as are agreed upon by the Union College/Campus Committee, (constituted under Article 4.6) shall, at the commencement of employment in such classification and annually thereafter, be given the opportunity to take an eye examination by an optometrist who is qualified to give the following tests:

- Unaided Visual Acuity (letter chart test);
- Refractive Findings;
- Corrected Visual Acuity;
- Amplitude Accommodation;
- Suppression;

- Distance Muscle Balance (Maddox Rod);
- One Metre Muscle Balance (Maddox Rod);
- Near Muscle Balance (Maddox Wing);
- Slit Lamp Biomicroscopy.

The College shall pay the difference, if any, between the fees paid to the optometrist and the amount paid by OHIP. The employee shall sign a form authorizing release of the optometrist's report to the College, and a copy of the report shall be supplied to the College and to the employee.

13.4.3 Work Breaks

Employees who regularly use a VDT shall not be required to perform more than one (1) hour's continuous work at a VDT to the exclusion of other duties at any one time, and the College shall ensure that a break from the machine (which shall include the performance of other work), of ten (10) minutes duration, is made available under such circumstances.

13.4.4 Work Stations

Where a computer is being used, the College shall equip work stations with terminal tables at an appropriate height, an adjustable chair and, where requested, a foot rest and/or a document holder.

13.4.5 VDT Testing

Where an employee has reasonable cause to believe a health and safety problem exists with their VDT, the employee may request that tests be conducted. Should the College not be able to resolve the employee's concern, the College will request that the Ministry of Labour, Occupational Health and Safety Branch, conduct appropriate tests.

13.5 Hepatitis "B" Vaccine

Where an employee's job places the employee at risk of being infected with Hepatitis "B", and the employee agrees to be vaccinated, the College shall pay for the employee's vaccination if the procedure is not covered by OHIP.

13.6 Environmental Conditions

The College will continue to make reasonable provision for the environmental conditions of air, light, space and temperature of employees' work areas in the College. A complaint of an employee concerning the environmental conditions mentioned above shall be discussed at a meeting between the College and the Union College/Campus Committee.

14. JOB SECURITY

14.1 Probationary Period

An employee will be on probation until they have completed six (6) months of employment with the College in any twelve (12) month period. At the discretion of the College, the probationary period may be reduced for an individual employee to such period of time as the College may determine. On successful completion of the probationary period, they shall then be credited with seniority equal to the probationary period served, and seniority thus acquired shall be applied in the manner set out in this Article.

14.2 Accumulating Seniority and Service

14.2.1 Leaves of Absence

Seniority and service shall accumulate for all purposes under the Collective Agreement for a period of up to, but not to exceed, six (6) calendar months during the term of this Agreement during any leave (s) of absence granted, with or without pay, pursuant to the provisions of this Agreement.

14.2.2 Pregnancy, Parental, Developmental Leaves and Less than 12 Month Positions

Notwithstanding the foregoing, seniority and service shall accumulate:

- during the length of a pregnancy and/or parental leave;
- during the length of developmental leave;
- and for any period of layoff pursuant to the Less Than 12 Month Positions Letter of Agreement.

14.2.3 Probationary Employees

This Article shall not apply in the case of probationary employees who shall be required to complete six (6) months of active employment to attain seniority unless waived by the College.

14.2.4 Layoff

It is understood that seniority but not service accumulates during periods of layoff under Article 15.

14.2.5 Workplace Safety and Insurance

Service shall accumulate for up to twelve (12) months of absence while in receipt of Workplace Safety and Insurance benefits.

14.2.6 Short Term Disability, Long Term Disability and Workplace Safety and Insurance

Seniority will continue to accumulate while an employee remains on Short Term Disability, Long Term Disability or in receipt of Workplace Safety and Insurance benefits.

14.3 Transfer Into Union

A person employed by the College, who is transferred into the bargaining unit, will be accorded full seniority, upon completion of the probationary period, based on length of service. Part-time support staff employees transferred into the bargaining unit, after November 14, 1991, shall have their seniority prorated, upon completion of their probationary period, based on a proration of hours of the part time position to the hours of the full-time position using 1820 hours per year as constituting the hours of the full-time position.

It is understood, however, that for the purposes of the application of Article 15.4, administrative staff and employees in the academic staff bargaining unit, who are transferred into the bargaining unit shall be entitled to exercise only that portion of their seniority, if any, accumulated as an employee in the bargaining unit or what formerly was the bargaining unit.

14.4 Bilingual Policy

Notwithstanding any official policy on bilingualism established at the College, no present employee shall be laid off from the College as a direct result of their inability to communicate in the French language. Recognizing that the College has the responsibility to determine the language requirements of any position, the College will, however, not unreasonably deny promotional opportunities to employees because of language requirements. Pursuant to Articles 4.6, 4.6.1 and 4.6.2 the Local Union may request a meeting and management will explain the reasons for the language designation.

14.5 Rehiring

Where employment in the bargaining unit ceases or is terminated and the employee is re-employed at the same College within six (6) years, the employee's service and seniority from the original date of hire shall be counted as unbroken, except that the period of non-employment in the bargaining unit shall not count. This provision shall have no effect on the probationary period to be served on re-employment. The parties agree that such re-establishment of service and seniority shall only occur after the rehiring, if any, has taken place.

14.6 Employment Stability

14.6.1 Employment Stability Committee

The parties will establish an Employment Stability Committee (ESC) of up to three (3) persons appointed by the Local Union and up to three (3) persons appointed by the College to undertake the responsibilities contained within Articles 14.6 and 15.3.

The parties agree to meet at least once in the Spring, Fall and Winter semesters at times that are mutually convenient.

Members shall not suffer any loss of pay during regular working hours when required to leave their duties temporarily for the purpose of attendance at meetings. The Union acknowledges, however, that the employees have their regular duties to perform and will not absent themselves without first obtaining permission from their immediate supervisor, and reporting to their immediate supervisor upon returning to their regular duties. In keeping with this understanding, permission to attend meetings shall not be unreasonably withheld consistent with College operating requirements.

14.6.2 Strategies

The ESC will seek to achieve employment stability strategies as follows:

- current and multi-year strategies should be developed within the resources available. Such strategies could include, but not necessarily be limited to, planning, retraining, identifying ways of determining employees' skills, training and experience previously achieved, early retirement, voluntary exit programs, alternative assignment, secondment, employee career counselling, job sharing, job trading, job shadowing, and professional development;
- discussions between the parties which explore these possible strategies would assist in the development of appropriate enhancements to Employment Stability;
- data which is relevant to employment stability shall be made available to both parties.

14.6.3 Employment Stability Fund

The College shall make available to the ESC for the purposes set out in Article 14.6, an annual contribution, covering the period of September 1 to August 31, to the Employment Stability Fund (ESF) on September 1 of each year, an amount equal to $50.00 per full-time member of the bargaining unit at the College (as of August 1 in each year). Where the amount of the ESF is equal to or exceeds an amount equal to $500.00 per full-time member of the bargaining unit at the College (as of August 1 in each year), the obligation of the College to contribute shall be suspended until the fund is again below that amount. In such a case, the next annual contribution required by the College shall be $50.00 per full-time member of the bargaining unit at the College (as of August 1 in each year), or the amount required to restore the ESF to $500.00 per full-time member, whichever is less.

The ESF shall be maintained in a separate joint trust account at a bank or other financial institution at which the College maintains one or more of its accounts and through the authority of the ESC, the chief financial officer shall disburse funds as directed. The joint account shall be named "(College name) – Full-Time Support Staff Employment Stability Fund". The books and records of this fund shall be open for inspection by any member of the ESC at any time during regular business hours.

Any requisition for a cheque and/or withdrawal from an account in which the ESF is maintained shall be countersigned by one member of the ESC appointed by the College and by one member appointed by the Local Union.

14.6.3.1 Administration of the Employment Stability Fund

The ESC shall administer and make decisions with respect to the ESF, by using the ESF, or such portion as the ESC considers appropriate, to facilitate employment stability strategies, both long-term and short-term, and for training or retraining. Surplus funds, if any, that are not immediately required for this purpose, may be invested at the instructions of the ESC in any account or certificate of deposit maintained and/or issued by a bank or financial institution.

14.6.3.2 Employment Stability Fund Arbitrator

Where there is no majority decision under Article 14.6.3.1, any member of the ESC may refer the matter to the Employment Stability Fund Arbitrator (ESFA).

There shall be an ESFA established at each College to be appointed by agreement of the President of the College and the President of the Local Union. The appointment, which may be renewable by mutual agreement, shall be for one (1) year, commencing on September 1 and expiring on August 31. In the event that the President of the College and the President of the Local Union are unable to agree upon the appointment of an ESFA, either the College or the Local Union may request the Minister of Labour to appoint an ESFA and the ESFA shall, upon appointment by the Minister of Labour, have the same powers as if the appointment had been made by the College and the Local Union.

The ESFA may make any decision that the ESC is empowered to make under Article 14.6.3.1.

The ESFA shall determine appropriate procedure and shall issue a decision within ten (10) calendar days of the referral of the matter to the ESFA. The ESFA shall hear the representations of the parties and shall adopt the most expeditious and informal procedure possible.

The decision of the ESFA shall be final and binding on the parties and any employee affected by the decision. The ESFA shall have no power to alter, modify or amend any part of the Agreement nor to make any decision inconsistent therewith.

The College and the Union shall each pay one-half (2) of the fees and expenses of the ESFA.

15. LAYOFF/RECALL PROCESS

15.1 General

An employee who has completed the probationary period shall not be laid off or subject to the layoff process, for any reason, unless and until the procedures contained in Article 15 have been applied in sequence.

15.2 Notice to Local Union

When the College contemplates any action that may result in an employee who has completed the probationary period being subject to the layoff process, the College shall give fourteen (14) calendar days written notification to the Local Union President prior to written notice being provided to the employees affected. At the same time, the College shall provide the Local Union with all data used by the College, including but not limited to staffing and financial information, in formulating its tentative determination to undertake the action contemplated.

15.3 Committee

15.3.1 Meetings

In addition to committee meetings under Article 14.6.1, the Employment Stability Committee (ESC) shall meet within five (5) calendar days of the giving of such notice, unless the parties mutually agree to extend these time limits.

15.3.2 Confidentiality

The Local Union, the College and the ESC shall maintain confidentiality with respect to any information received and the deliberations of the ESC until mutually agreed between the College and the Local Union. Nothing herein shall prevent the parties from obtaining advice, on a confidential basis, as required.

15.3.3 Recommendations

It shall be the duty of the ESC to consider the matter and to make recommendations to the President of the College with respect to any or all of the alternatives listed below which might be resorted to in order to prevent or minimize the dislocation of employees:

1. Potential creation of vacancies that might be filled by affected employees;
2. Conversion of part-time positions and/or displacement of non-bargaining unit employees;
3. The utilization of other means, such as normal retirements, voluntary leaves or transfers in order to prevent or minimize the effects of the action contemplated;
4. The improvement of employment potential for employees affected by the provision of training or retraining programs and job counselling;
5. Investigation of potential alternative job opportunities that might exist for employees affected both within and outside the College, such as comparable employment opportunities;

6. The temporary assignment of redundant and displaced employees to positions held by other employees who are on various leaves of absences.

It will be the duty of the ESC to make recommendations to the President of the College within fourteen (14) calendar days of notice provided under Article 15.2. Where the ESC is unable to agree on any recommendations, the members appointed by the Union and the members appointed by the College may make separate recommendations. Where separate recommendations are to be delivered they will be exchanged between the appointees prior to delivery.

15.3.4 Confidentiality of Recommendations

Where recommendations, either joint or separate, are delivered to the President of the College, they shall be maintained as confidential until the fourteen (14) calendar day period mentioned in Article 15.2 has expired, or such other period as may be agreed by the Local Union and the College.

15.3.5 Notice to Employees

15.3.5.1 Written Notice of Layoff

If, after consideration by the President of the recommendations, the College determines that layoffs are still necessary, employees may receive written notice of layoff after the fourteen (14) calendar day period mentioned in Article 15.2, or such other period as may be agreed by the Local Union and the College.

15.3.5.2 Notice Period

No employee shall be laid off without receiving ninety (90) calendar days written notification from the College except in circumstances beyond the reasonable control of the College. Unless otherwise agreed in writing, such employees will remain actively employed for the duration of the notice period.

15.3.6 Continued Discussions

Where the ESC wishes to make further recommendations, the ESC may continue to meet following notice being provided to employees pursuant to Article 15.3.5.1, and may make further recommendations to the President to attempt to minimize the dislocation of employees.

15.4 Layoff Procedure

When a College decides that circumstances require a reduction in personnel in any position the following provisions shall apply:

15.4.1 Probationary Employees

Probationary employees performing the work in question shall be released. The College shall notify the Union of probationary employees released in these circumstances.

15.4.2 Post Probationary Employees

Where the qualifications of employees in the affected position who have completed their probationary period are relatively equal as to that position, their layoff shall be on the basis of seniority.

15.4.3 Bumping Procedure

The employee so identified shall be assigned by the College to the first position determined in accordance with the following sequence:

- to a vacant position in the same payband provided they can satisfactorily perform the core duties and responsibilities of the job. If there is no such position then;
- to the position held by the most junior employee within their same payband provided they can satisfactorily perform the core duties and responsibilities of the job and they have greater seniority. If there is no such position then;
- to a vacant position in the payband with a maximum rate one lower than the employee's own payband provided they can satisfactorily perform the core duties and responsibilities of the job. If there is no such position then;
- to the position held by the most junior employee in the payband with a maximum rate one lower than the employee's own payband provided they can satisfactorily perform the core duties and responsibilities of the job and they have greater seniority;
- the provisions of the last two sections shall be repeated until all paybands have been reviewed in descending order of maximum rate and either a vacant position or a position held by a more junior employee is identified and the employee affected can satisfactorily perform the core duties and responsibilities of the job. If no such position is identified the employee shall be laid off.

(To illustrate how this sequence operates on or after March 1, 2007, see the Layoff/Recall Process – Bumping Letter of Understanding appended to the Collective Agreement).

15.4.4 Layoff or Reassignment

15.4.4.1 Notice

The employee shall be provided written notice of layoff or reassignment. Should the employee receive notice of reassignment, the employee may elect in writing, to be laid off in lieu of such reassignment, provided such election is made within five (5) working days of notice being provided to the employee. In such case the date the employee received the notice of reassignment shall be deemed to be the date of notice of layoff. The College shall provide a further letter to the employee confirming layoff.

15.4.4.2 Position Outside Forty (40) Kilometres

Where the position identified in accordance with the above sequence is in excess of forty (40) kilometres from the location at which the employee is normally assigned, the employee shall have a further right of election. The College, by again following the sequence in Article 15.4.3, shall identify the first position, if any, within forty (40) kilometres of the location at which the employee is normally assigned and the notice provided in accordance with 15.4.4.1 shall identify both positions if a second position is identified. The employee shall elect in accordance with 15.4.4.1 to take either the job identified which is in excess of forty (40) kilometres or to take the job identified which is within forty (40) kilometres or to be laid off.

15.4.5 Displacement

15.4.5.1 Second Displacement

The College shall follow the above procedure for an employee displaced by the affected employee above.

15.4.5.2 Third Displacement

The College shall follow the above procedure for an employee displaced under "Second Displacement".

15.4.5.3 Final Displacement

An employee displaced as a result of the "Third Displacement" shall be laid off by the College.

15.4.6 Familiarization Period

It is understood that the College is not required to train an employee for a position into which they may be assigned pursuant to Article 15.4.3, but the College shall provide a reasonable period of familiarization where necessary.

15.4.7 Rate of Pay

An employee who has been assigned to a position pursuant to the above procedure shall continue to receive their current rate of pay for a period of ninety (90) calendar days. Thereafter, an employee who has been assigned to a position pursuant to the above procedure shall receive the rate within the payband for the new position, which is closest to, but does not exceed, their current rate and for the purpose of further progression, if any, within the payband shall be deemed to have service within such position equivalent to their service in their prior position. The ESC may consider using the ESF to offset the cost for the ninety (90) day differential between the two wage rates.

15.5 Waiver of Rights/Severance

15.5.1 General

Note: For the term of the 2025-2028 Collective Agreement, this Article is superseded by the NEW Letter of Understanding – Enhanced Severance Payments

Where an employee (other than one who is affected by contracting out and who elects to receive severance pay pursuant to Article 15.5.2) is laid off and has:

- less than five (5) years service and within twenty-one (21) calendar days of receipt of notice of layoff elects to waive all rights of recall under the Agreement, they shall receive severance pay equal to one (1) week pay at their current salary for each completed year of service.
- more than five (5) years service they will have their severance pay treated pursuant to the provisions of the *Employment Standards Act*., *2000*.

Acceptance of severance shall not terminate the right to retraining under Article 15.7.

15.5.2 Severance Pay - Contracting Out

In the event that an employee who is being laid off as a result of contracting out exercises their option to waive the recall procedure, as herein set out, they shall be entitled to severance pay based on one (1) week's pay at their current salary for each year of service.

15.5.3 Severance Pay - No Pyramiding

In deciding the amount of severance pay required to be paid by the College, any pay in lieu of notice or severance pay required to be paid under the *Employment Standards Act, 2000* shall be deemed to be a credit toward the severance pay entitlement under Article 15.5. The intention of this provision is to avoid pyramiding of pay in lieu of notice and severance pay under the *Employment Standards Act, 2000* and the severance pay requirements hereunder.

15.6 Recall

For the purposes of this Article, a vacancy is any position within a payband in which the College requires staffing and includes vacancies posted under Article 17.1 for which a final selection and confirmation of employment has not been made by the College.

15.6.1 Recall by Seniority

Persons laid off hereunder who retain recall rights under Article 15 shall be recalled on the basis of seniority providing they can satisfactorily perform the core duties and responsibilities of the job without training, and provided such vacancy occurs within eighteen (18) months of their layoff.

Recall rights are limited to positions equal to or less than the person’s former payband.

Persons with recall rights will also be entitled to apply for vacancies posted pursuant to Articles 17.1 and 17.1.1.

15.6.2 Recall Outside Forty (40) Kilometres

If the opportunity is outside forty (40) kilometres of the location at which the person was assigned, the person will be allowed refusals without forfeiting their recall under this Article until or if, an opportunity, if any, within forty (40) kilometres is offered or until the recall rights have expired, whichever comes first.

15.6.3 Recall List

The College will provide current recall list to the ESC on its request.

15.7 Retraining

15.7.1 Tuition Fee

Where a person who was in the bargaining unit has been laid off by the College, pursuant to the provisions of Article 15, the College agrees to provide for a fee of twenty dollars ($20.00) per course plus the cost of required course materials, both of which will be paid from the Employment Stability Fund:

(a) approved programs or courses, with regulated tuition fees; or,
(b) other courses or programs as are mutually agreed,

which the College currently offers. The individual must meet the College entrance and admission requirements and is subject to academic policies.

15.7.2 Duration of Retraining

This retraining opportunity shall continue for up to three (3) years from the date of layoff or until such person is recalled, whichever occurs first. Where a person has not completed a course or program in which they are enrolled at the time of recall, the College shall consider ways of enabling the individual to complete the course or program.

15.7.3 Re-employment Assistance

The College agrees to assist persons laid off from the Bargaining Unit towards achieving re-employment by providing career counselling, job search assistance, and retraining opportunities through the application of existing College services.

15.7.4 Consideration for Employment in Non-bargaining Unit Work

In addition to the recall rights contained in Article 15.6.1, a person on layoff with in excess of five (5) years' seniority who is participating in retraining pursuant to Article 15.7, of a full time nature, may make a written request to the College's Human Resource Department for consideration for employment in non-bargaining unit work during their non-study period. The College shall make an effort to assist them in locating suitable non-bargaining unit work within the College.

15.8 Contracting Out - Union Notification

If the College decides to contract out work or services which are being performed by employees at the commencement date of this Agreement which would cause the layoff or involuntary displacement of any employees covered by this Agreement, the College will notify the Local Union and OPSEU/SEFPO Head Office four (4) weeks in advance of the written notice being provided to the employees affected. The processes in Article 15.3 shall be followed.

15.9 Reimbursement of Relocation Costs

An employee reassigned by the College under the provisions of Articles 15 and 17.4 to a work location more than eighty (80) kilometres distant from the employee's previous work location shall be reimbursed for necessary expenses incurred in transporting the employee's household furniture and effects to a residence near such new work location up to a maximum amount of $1,000. Packing and insurance charges shall not qualify as an expense for reimbursement purposes. To qualify for reimbursement, such relocation of residence and expense incurred as a result must take place within one year of the reassignment.

15.10 Seniority Lost

Seniority shall be lost and employment deemed to be terminated if:
- the employee voluntarily quits;
- the employee is discharged for cause, unless such discharge is reversed through the grievance procedure;
- the person is laid off for a period in excess of eighteen (18) months;
- the employee overstays a leave of absence unless a reason satisfactory to the College is given;
- the employee utilizes a leave of absence for other than the reason for which such leave of absence was granted;
- the person having been laid off, fails to notify the College of their intention to return to work within seven (7) days following mailing of a registered notice of recall to their last recorded address with the College; or having provided such notification, if the person fails to return to work within ten (10) days from the date of mailing of such registered notice of recall;
- the employee is absent without prior authorization or approval for five (5) consecutive working days unless reasons satisfactory to the College are subsequently accepted; or
- the person is laid off and elects to waive all rights of recall and accepts severance pay.

15.11 Technological Change

This Article shall apply when the College introduces new technology in the form of new equipment or process substantially different in nature or design from that previously in effect which has the initial effect of displacing an employee from the employee's position or more than one employee from their positions.

In such circumstances, the College will provide the Union Local and the ESC at least 90 calendar days before the date on which the technological change is introduced with a description of the change and the approximate number of employees likely to be directly affected by the change. The ESC shall meet to discuss the effect on the employment status of employees directly affected and possible measures to reduce adverse effects of the technological change including discussion of developmental opportunities for employees for possible assignment to other positions within the College or assisting in a change of career for employees with suitable qualifications.

The ESC may have other persons at its meetings to assist in examination of the circumstances regarding the technological change.

The ESC may make recommendations on the measures for developmental opportunities or possibilities of other assignments, or other measures to assist the College and employees affected by the technological change.

Following the effective date of the technological change a reduction of employees resulting therefrom shall be carried out pursuant to Article 15.

Where it is considered mutually desirable that the Union Local and the College set out in writing the measures to be applied to any resolution reached in accordance with this Article, it shall be signed by the parties and shall have the effect of a provision of this Agreement and be subject to Article 18, Complaints/Grievances, but shall not continue beyond the terms of this Agreement as currently in effect.

16. EMPLOYEE EVALUATION

16.1 Performance Appraisal

The copy of an employee's performance appraisal which is to be filed on the employee's record shall be given to the employee in advance. The employee shall initial such appraisal as having been read within seven (7) days of receipt of a copy of such appraisal. If the employee wishes, they may add their views to such appraisal within such seven (7) day period. A notice shall be printed on the performance appraisal stating "The employee's rights concerning performance appraisals are found under Article 16.1 of the Collective Agreement."

In preparation for the performance appraisal process, the Supervisor shall review the employee's PDF to determine if it is current.

16.2 Disciplinary Notice

Each employee shall receive a copy of any formal disciplinary notice that is to be placed in their personnel file. With the consent of the employee concerned, notification shall be given to the Local Union that a disciplinary notice is being served on the employee.

16.3 Access to Personnel File

Each employee shall be entitled to reasonable access to their personnel file in order to examine their performance appraisals and disciplinary notices.

16.4 Removal of Notices from File

Each employee may, once each calendar year, request the removal of a disciplinary notice that has been in their official personnel file for more than one (1) year. The removal of such notice shall be at the discretion of the College. Such discretion shall not be exercised unreasonably.

17. JOB POSTINGS/PROMOTIONS

17.1 Notices

Notices of a vacancy in a position within a payband covered by the agreement shall be posted electronically for a period of five (5) days. No employee shall be hired from outside the College until the College has complied with Article 17.1.1.1. Such notice shall contain position title, payband, hourly rate range, current Campus location, current hours of work, current shift(s), and an outline of the basic qualifications. For the purposes of this Section, reference to days shall exclude Saturdays, Sundays, and statutory holidays. Copies of all posted vacancies shall be sent to the Local Union President at the time of posting.

17.1.1 Consideration - Bargaining Unit Employees

When a vacancy occurs and employees within the bargaining unit at the College apply, the College shall determine the successful candidate based on the qualifications, experience and seniority of the applicants in relation to the requirements of the vacant position. Where the qualifications and experience are relatively equal, seniority shall govern, provided the applicant has the necessary qualifications and experience to fulfil the requirements of the position.

The College need not consider probationary employees.

17.1.1.1 Notification - Applicant

All applications will be acknowledged and all applicants who are interviewed will be notified of the outcome of their application and the name of the successful internal applicant, if any. The College will neither interview nor provide any information to a hiring manager about any applicants from outside the bargaining unit until it has complied with Articles 17.1 and 17.1.1 above. Except as set out in 17.1.4, the College will not consider applicants from outside the bargaining unit until it has assessed internal applicants and notified them of the results.

17.1.1.2 Notification - Local Union President

The College shall notify the Local Union President in writing when a posting has been filled.

17.1.2 Job Reversal

Where an employee has been selected for a posted vacancy in accordance with the provision herein and it is subsequently determined by the College, after discussion with the employee, within sixty (60) calendar days from their assignment to the position that they cannot satisfactorily perform the requirements of the job in question, the College will return the employee to their former rate and position without loss of seniority. Any further displacement of employees as a direct result of their return shall be accomplished by transferring such employees to their former position and wage rate without loss of seniority unless otherwise agreed upon and such transfer shall not be the subject of any grievance.

17.1.2.1 Job Reversal Posting Exemption

The College shall not be obligated to repost the vacancy created by the job reversal and may reconsider applicants of the original posting if it so chooses. If the College reconsiders applicants of the original posting, it will first consider the internal applicants who were interviewed.

17.1.3 Resultant Vacancies

The first and second resultant vacancies, if any, arising out of the filling of a particular posted vacancy in Article 17.1.1 shall be posted and the same provisions shall apply. Any further resultant vacancies which arise need not be posted. Where such vacancies need not be posted, the College shall, however, give proper consideration to qualified bargaining unit employees prior to filling such position(s).

17.1.4 Consideration - Non-Bargaining Unit Employees

Employees who are not included in the bargaining unit may apply for posted vacancies but will be considered only after the application of Articles 17.1.1 and 17.1.1.1. In addition to any other factor that the College considers relevant, consideration will be given to service with the College.

Regular Part-Time Employees in the CAAT Part-Time Support Staff bargaining unit who have completed their probationary period shall be deemed to be internal applicants for the purposes of Articles 17.1.1, 17.1.1.1, 17.1.2.1 and 17.1.5.

17.1.5 Exemption from Posting When Vacancy Reoccurs Within Six Months

Where a position is posted in accordance with Article 17.1 and either the successful applicant leaves the position within six months of assuming it or there is an additional vacancy for the same position reporting to the same first level manager within six (6) months of posting, the College may either reconsider applicants of the original posting or repost the vacancy. If the College reconsiders applicants of the original posting, it will first consider the internal applicants who were interviewed.

17.2 Promotion/Re-evaluation

17.2.1 From A Permanent Position

An employee who is promoted or re-evaluated to a higher payband shall be paid the rate for the new payband which provides an increase of not less than the next wage rate step increase which would have been available to the employee in their former payband. Where the employee was receiving the maximum rate, the increase shall not be less than the difference between the maximum rate and the preceding rate step in the former payband. The new wage rate shall not exceed the maximum rate of the new payband.

17.2.2 From A Temporary Position

When an employee is assigned temporarily to a position, and then receives a promotion or re-evaluation to the same position or to a position which is sufficiently similar in nature, the employee's wage rate in the temporary position will be used to calculate the new wage. Otherwise the employee's last wage rate in their permanent position shall be utilized. The new wage rate shall not exceed the maximum rate of the new payband.

17.3 Temporary Assignments

17.3.1 Temporary Postings

Where the College has at least four (4) weeks' notice of a temporary vacancy in the bargaining unit which is expected to be of more than four (4) months' duration, the College shall post the temporary vacancy so that bargaining unit employees can indicate their desire to be selected for such vacancy.

Recognizing that the College reserves the right to select a person in the bargaining unit or hire a temporary employee at its discretion, where a bargaining unit employee is selected as a temporary replacement the employee will have the right to return to their regular position or its equivalent on the expiration of the temporary assignment. The first resultant temporary vacancy shall also be posted in accordance with this clause if it meets the criteria. It is understood that none of the clauses of Article 17.1 apply to temporary vacancies.

17.3.2 Higher Wage Rates

When the duties and responsibilities of a position within a higher rate payband (or having a higher maximum salary) are assigned temporarily by the College to an employee, for a period in excess of one (1) working day, the following conditions shall apply:

- the affected employee shall be paid the next higher rate in that payband which provides an increase of not less than the incremental amount available to the employee in the payband occupied immediately prior to the assignment providing the resultant rate does not exceed the maximum rate of the new payband;
- where such employee was receiving the maximum rate, the increase shall not be less than the incremental differential between the maximum rate and the preceding rate in that payband providing that such new rate does not exceed the maximum rate for the payband to which they are temporarily assigned.

17.3.3 Lower Wage Rates

When the College temporarily assigns an employee to the duties and responsibilities of a position in a payband with a lower rate range or maximum salary where there is no work reasonably available for them in the position from which they were assigned, they shall be paid the lower applicable wage rate to which they were assigned after the expiration of ten (10) consecutive working days in such lower payband.

When the College temporarily assigns an employee to the duties and responsibilities of a position in a payband with a lower rate range or maximum salary where there is work reasonably

available for them in that position from which they were assigned, they shall continue to be paid at the rate applicable to the position from which they were assigned.

17.3.4 Excluded Positions

When a College temporarily assigns an employee to the duties and responsibilities of a position excluded from the provisions of this Collective Agreement, the employee's obligations to contribute to the regular monthly Union dues under Article 5.4 and their seniority shall continue during the period of such temporary assignment up to a maximum period of eighteen (18) calendar months unless extended by agreement of the Local Union and the College.

The College will notify the Union Local of the employee's name, excluded position title, and the date of when the employee is expected to return to their home position.

17.3.5 Emergency Work Assignment

The parties to this Agreement recognize that if the College has been unsuccessful in obtaining Appendix D employees, College operations may require the assignment of work that necessitates full-time bargaining unit employees to perform work at another campus, which is not the employee's regularly assigned workplace due to emergency circumstances beyond the College's reasonable control. When the College has given notice of such an emergency work assignment, the College shall take into consideration the legitimate requests of employees to be excused where the performance of such an assignment would cause undue hardship or serious inconvenience. If the emergency work assignment is in excess of forty (40) kilometres from the employee's regularly assigned work location, the employee shall have the right to refuse such assignment.

17.4 Transfers

When a College determines that an employee is to be transferred between campuses, it will give the employee at least three (3) weeks' notice of the transfer. This Article will not apply where transfers are made pursuant to the layoff procedures. In such circumstances the applicable layoff process will apply.

If the employee is transferred to a work location more than eighty (80) kilometres distant from the employee's previous work location then Article 15.9 shall apply.

18. COMPLAINTS/GRIEVANCES

18.1 Definitions

18.1.1 Committee Secretary

"Committee Secretary" means the Chief Executive Officer of the CEC;

18.1.2 Day

For the purpose of this Article, reference to "days" shall exclude Saturdays, Sundays, and statutory holidays, and the holiday period referred to in Article 10.2.

18.1.3 Union

"Union" means OPSEU/SEFPO;

18.1.4 Grievance

"Grievance" means a complaint in writing arising from the interpretation, application, administration or alleged contravention of this Agreement.

18.2 General Conditions

18.2.1 Time

If the grievor fails to act within the time limits set out at any Complaint or Grievance Step, the grievance will be considered abandoned.

18.2.2 No Reply

If an official fails to reply to a grievance within the time limits set out at any Complaint or Grievance Step, the grievor may submit their grievance to the next Step of the grievance procedure.

18.2.3 Extensions

At any Complaint or Grievance Step of the grievance procedure, the time limits imposed upon either party may be extended by mutual agreement.

18.2.4 Recognition of Union Representation

At a meeting at any Complaint or Grievance Step of the grievance procedure, subject to Article 18.3.1 the employee may be represented by a Union Steward if the employee desires such assistance; at Step 2 a Union Staff Representative may be present at the request of either the College or the Union. It is recognized that at some Colleges and/or Campuses there may be occasions when no Stewards have been elected or selected. In such a case, Colleges are prepared to recognize the attendance of a Local Union Officer in place of the Steward at meetings referred to in this Agreement.

18.2.5 Maintenance of Wages for Time Off

It is understood and agreed that the grievor and their Steward or Local Union Officer shall not suffer any loss of pay when (during regular working hours) their presence is requested by the grievor and they must leave their duties temporarily to attend meetings under this Article. The Union acknowledges, however, that employees have their regular duties to perform and they will not absent themselves without first obtaining permission from their immediate Supervisor and reporting to their immediate Supervisor upon return to their regular duties. In keeping with this understanding, permission to attend such meetings shall not be unreasonably withheld consistent with College operating requirements.

18.2.6 Rights

An employee shall not be required to appear before a committee, board or other investigating body to answer concerning their conduct or performance without first being given reasonable opportunity to be accompanied by an employee representative if, as a result of their appearance, they may be subject to some written reprimand, assessment or penalty. However, this provision shall not be applicable when an employee is required to appear before their immediate Supervisor or, in their absence, the person acting in their stead or the Human Resources representative of the College to answer concerning their conduct or performance.

18.2.7 Cost Sharing

The College and the Union shall each pay one-half (1/2) the remuneration and expenses of the chairperson and shall each pay the remuneration and expenses of their nominee should an Arbitration Board be utilized.

18.3 Types of Grievance

18.3.1 Grievance Procedure - Working Conditions and Terms of Employment

18.3.1.1 Grievances

A complaint shall be taken up as a grievance in the following manner and sequence provided it is presented within fifteen (15) days after the circumstances giving rise to the complaint have occurred, or have come or ought reasonably to have come to the attention of the employee.

18.3.1.2 Step 1

An employee shall present a signed grievance in writing to the Department Head of the Department in which they are employed stating the nature of the grievance, the remedy sought and shall be sufficiently specific to identify the alleged violation(s) of the Collective Agreement.

The Department Head shall give their decision, in writing, to the grievor within ten (10) days of the presentation. It is agreed, however, that where an employee's immediate Supervisor and their Department Head are one and the same person, Step 1 shall be dealt with at the next level of supervision.

18.3.1.3 Step 2

Where the grievor is not satisfied with the decision at Step 1, they shall present their grievance in writing within ten (10) days of the date they received the decision to the President of the College.

The President or their designee shall convene a meeting concerning the grievance, within fourteen (14) days of the presentation, at which the grievor shall have an opportunity to be present and shall give the grievor their decision, in writing, within ten (10) days following the meeting.

18.3.2 Grievances - Unsuccessful Competition

In cases of a grievance regarding an unsuccessful competition, the procedures described under Articles 18.3.1.2 and 18.3.1.3 shall apply, except that the Department Head referred to in the foregoing shall be the Department Head of the position for which the applicant was unsuccessful and where subsequently necessary, the President or their designee.

18.3.3 Group Grievance

Where a number of employees in any College have identical grievances and each employee would be entitled to grieve separately, they shall present a group grievance in writing signed by each employee to the Director of Human Resources, or as designated by the College, within fifteen (15) days following the occurrence or origination of the common circumstances giving rise to the grievance commencing at Step 2 of the grievance procedure. The grievance shall then be treated throughout the balance of the grievance procedure as a single grievance.

18.3.4 Multi-College Issues

Where the grievance pertains to a number of Colleges, separate grievances shall be sent to the Directors of Human Resources or designated persons of each College affected with copies to the Chief Executive Officer of the CEC.

Failing settlement following the Step 2 meeting, such grievance may be referred to mediation/arbitration providing such referral is within fourteen (14) days of the receipt of the Step 2 reply.

18.3.5 Union Grievance

The Union shall have the right to file a grievance based on a difference arising directly out of the Agreement concerning the interpretation, application, administration or alleged contravention of this Agreement. However, such grievance shall not include any matter upon which an employee is personally entitled to grieve and the regular grievance procedure for a grievance peculiar to an individual employee shall not be bypassed except where the Union establishes that the employee has not grieved an unreasonable standard that is patently in violation of this Agreement and that adversely affects the rights of persons in the bargaining unit.

A Union grievance shall be presented in writing, signed by the Local Union President or their designee to the Director of Human Resources or as designated by the College concerned, within thirty (30) days after the circumstances giving rise to the complaint have occurred, or have come to or ought reasonably to have come to the attention of the Union. The grievance shall then be processed in accordance with Step 2 of the grievance procedure.

18.3.6 College Grievance

The College shall have the right to file a grievance based on a difference arising directly out of the Agreement concerning the interpretation, application, administration or alleged contravention of this Agreement. Such grievance shall be presented in writing, signed by the President or their designee to the Local Union President of the College concerned with a copy to the Union President within thirty (30) days following the occurrence or origination of the circumstances giving rise to the grievance.

The grievance shall then be processed in accordance with Step 2 of the grievance procedure with the appropriate changes. Failing settlement following Step 2 meeting, such grievance may be referred to mediation/arbitration providing such referral is within fourteen (14) days of the receipt of the Step 2 reply.

18.3.7 Grievances re: Dismissal, Suspension, Layoff or Reassignment

18.3.7.1 General

Articles 18.3.7.2 and 18.3.7.3 apply to an employee covered by this Agreement who has completed their probationary period, it being understood that the dismissal, suspension or release of an employee during the probationary period shall not be the subject of grievance.

18.3.7.2 Grievance

An employee who claims they have been dismissed or suspended without just cause or improperly laid off or reassigned shall, within fifteen (15) days of the date they are advised in writing of their dismissal, suspension, layoff or reassignment present their grievance in writing to the President, commencing at Step 2 and the President, or their designee shall convene a meeting and give the grievor and the Union Steward their decision in accordance with the provisions of Step 2 of Article 18.3.1.3. A Union Staff Representative may be present at such meeting at the request of either the College or the Local Union.

18.3.7.2.1 Layoff Grievance

An employee claiming improper application of Article 15.4.3, shall state in the grievance the position(s) and name of incumbent, if any, to which the employee claims entitlement.

The College will provide the current PDFs of the positions, named in the grievance, to the employee within three (3) days after the filing of the grievance.

If the grievance is not resolved, then the written referral to mediation/arbitration shall specify, from the position(s) originally designated, no more than four (4) positions which shall thereafter be the subject matter of the grievance and the arbitration.

18.3.7.3 Mediation/Arbitration

If the grievor is not satisfied with the decision of the President, the grievor shall, within ten (10) days of receipt of the President's decision by notice in writing to the Director of Human Resources or College's designee, refer the matter to mediation/arbitration, for the purpose of resolving the grievance in an expeditious and informal manner, as provided in this Agreement.

18.4 Mediation/Arbitration Procedure

18.4.1 Referral to Mediation/Arbitration

In the event any difference arising from the interpretation, application, administration or alleged contravention of this Agreement has not been satisfactorily settled under the foregoing grievance procedure, the matter shall then, by notice in writing given to the other party within ten (10) days of the date of receipt by the grievor of the decision of the College's Official at Step 2, be referred to mediation/arbitration as provided.

18.4.2 Mediators/Arbitrators

Any matter so referred to mediation/arbitration, including any questions as to whether a matter is arbitrable, shall be heard by a Mediator/Arbitrator, which shall be selected from the following list:

A. Durette	J. Parmar
E. Gedalof	S. Price
D. Leighton	D. Randazzo
J. Nyman	S. Raymond
K. O'Neil	M. Wilson

- The Mediator/Arbitrator shall be assigned either by agreement or, failing agreement, by lot. The parties may from time to time by mutual agreement add further names to such list;

- If an Arbitration Board is selected, following the selection of a Chairperson, the College and the Union shall each appoint its nominee within ten (10) days thereafter and forthwith notify the other party and the Chairperson.

18.4.3 Mediator/Arbitrator

The Mediator/Arbitrator shall endeavour to assist the parties to settle the grievance by mediation. If the parties are unable to settle the grievance by mediation, the Mediator/Arbitrator shall determine the grievance by arbitration.

18.4.4 Powers

The Mediator/Arbitrator shall have those powers set out in the *Colleges Collective Bargaining Act,* 2008, except that Section 14(16) of the *Colleges Collective Bargaining Act*, 2008 shall not apply.

18.4.5 Limitations

The Mediator/Arbitrator shall not be authorized to alter, modify or amend any part of the terms of this Agreement nor to make any decision inconsistent therewith nor to deal with any matter that is not a proper matter for grievance under this Agreement.

18.4.6 Mediator/Arbitrator's Power

The Mediator/Arbitrator may dispose of a grievance without further notice to any person who is notified of the hearing and fails to appear. The finding of the Mediator/Arbitrator as to the facts and as to the interpretation, application, administration or alleged contravention of the provisions of this Agreement, shall be final and binding upon all parties concerned including the employee(s) and the College.

18.4.7 Arbitration Board

Where both parties agree, a Board of Arbitration, which shall have the same powers and limitations as a Mediator/Arbitrator, may be substituted for an Arbitrator. The nominees shall be selected pursuant to Article 18.4. The finding of the majority of the Board as to the facts, and as to the interpretation, application, administration or alleged contravention of the provisions of this Agreement, shall be final and binding upon all parties concerned including the employee(s) and the College.

18.4.8 Persons Excluded

No person shall be appointed as a Mediator/Arbitrator or as a member of an Arbitration Board who is, or was within six (6) months prior to their appointment an employee or is or has within six (6) months prior to their appointment, acted as solicitor, counsel, advisor, agent or representative of either of the parties or the College concerned. Any Mediator/Arbitrator who declines to act on five (5) consecutive occasions shall be removed from the list and a replacement selected by mutual agreement of the parties.

18.4.9 Scheduling of Mediation/Arbitration

Where one party refers a grievance to mediation/arbitration in accordance with this Article, that party will endeavour to arrange for the matter to be scheduled at joint grievance scheduling within one-hundred-and-twenty (120) days.

18.5 Classification Grievances

18.5.1 Grievance to College Official

An employee who claims their assigned job is improperly evaluated may present a grievance in writing to the College official designated responsible for classification grievances.

The written grievance must specify the payband claimed by the employee to be appropriate.

18.5.1.1 Retroactive Payment

It is understood that there shall be no retroactive payment prior to the date of presentation of the written grievance as specified above.

18.5.2 Grievance Process

18.5.2.1 Step 1- Meeting and Information Provided

The College Official shall arrange a meeting within fourteen (14) days after receiving the grievance to permit the employee and a Local Union Representative the opportunity of making representations in support of the grievance.

The College Official shall ensure that the current Position Description Form (PDF), as per Article 7.2, is provided at least five (5) days prior to the meeting. At the meeting, the employee must first indicate in writing whether they are in agreement with the PDF and if not what specific disagreements they have with it. A discussion to resolve any differences shall then take place. At this meeting, following discussion on the PDF, both parties will exchange, in writing, the point rating by factor for the position in dispute.

18.5.2.2 College Official's Decision

Within fourteen (14) days after the receipt of the point rating by factor from the Union, the College Official shall give their decision in writing. It is understood that the grievance cannot proceed further until the point rating by factor and the specific disagreements on the PDF, if any, have been received by the College Official, in writing from the Union.

18.5.2.3 Referral to Arbitration After Step 1

Where the grievance has not been resolved at Step 1 but there is agreement concerning the PDF, the matter may be referred directly to Arbitration by notice in writing given to the College within fourteen (14) days of the date the grievor should have received the College's decision under Step 1. The matter will be referred to a sole arbitrator as provided in Article 18.5.3.

18.5.2.4 Step 2

Where the grievance has not been resolved and where the grievor is not in agreement with the PDF, then they shall refer the grievance in writing to the President of the College within fourteen (14) days of the date they received or should have received the decision.

The President or their designee shall convene a meeting concerning the grievance within fourteen (14) days of the presentation, at which the grievor shall have an opportunity to be present. The President or their designee shall give their decision in writing, within fourteen (14) days following the meeting.

18.5.2.5 Referral to Arbitration After Step 2

Where the grievance has not been resolved at Step 2 the matter may be referred to Arbitration by notice in writing given to the College within fourteen (14) days of the date the grievor should have received the College's decision under Step 2. The matter will be referred to a sole arbitrator as provided in Article 18.5.3. On mutual written agreement signed by the Local Union and the College, the matter shall be referred to an Arbitration Board as provided under Article 18.5.4.1.

18.5.3 Expedited Arbitration

Where the grievance has not been resolved, it shall proceed as herein provided:

18.5.3.1 Arbitrators

Any matter so referred to arbitration, including any questions as to whether a matter is arbitrable pursuant to this process, shall be heard by one of the following specially trained Arbitrators:

J. Cavé	R. McLaren
A. Durette	K. O'Neil
E. Gedalof	D. Randazzo
N. Jesin	

The Arbitrators shall be assigned either by agreement or failing agreement, by lot. The parties may from time to time by mutual agreement add further names to such list.

All Arbitrators so added shall undergo a training session on the job evaluation system, to be jointly developed and presented by the parties, and all current Arbitrators shall undergo reorientation to the job evaluation system every two (2) years.

18.5.3.2 Time

A sole Arbitrator appointed under this expedited process shall commence to hear the matter referred within twenty-one (21) days of their appointment wherever possible, and shall issue a brief written notice of their decision within fourteen (14) days of the hearing. Copies of the decision shall be sent to the Local Union, the College, OPSEU/SEFPO Grievance Department and the CEC.

18.5.3.3 Arbitration Data Sheet

The Arbitration Data Sheet must be completed and signed by both parties in advance of the hearing.

18.5.3.4 Information to Arbitrators

The following shall be received by the Arbitrator no less than fourteen (14) days prior to the hearing:

- the PDF supplied by the College;
- a completed Arbitration Data Sheet;
- a brief written submission by the Union describing the grievance and referencing appropriate section(s) of the PDF;
- a brief written submission by the College.

The parties shall deliver their written submissions to the other party at the same time that they are forwarded to the Arbitrator.

No written submission or materials can be considered at the hearing that have not been provided by the parties in conformity with the process set out in this clause.

18.5.3.5 Site

The hearing will take place at a site mutually acceptable to the parties. Failing agreement, the Arbitrator shall select the site.

18.5.3.6 Hearing

The parties agree that the process shall be informal and that legalistic processes normally used in conventional arbitration shall not be used. Up to three (3) Management representatives and three (3) Union representatives may attend the hearing. The parties will inform each other no less than five (5) days in advance who will attend. One (1) person from each side will be designated as spokesperson. The Arbitrator may ask questions of any of the Union or Management representatives present. The spokesperson for each party may give a summary statement normally not exceeding fifteen (15) minutes at the conclusion of the question period. While it is generally not the intent of the parties to use an outside legal counsel at an expedited arbitration hearing, the parties agree that where they intend to use such counsel at the hearing, they shall notify the other party at least ten (10) days before the date of the hearing. In addition a translator may be present if necessary. The side that requests the translator shall be responsible for the cost involved. By mutual written agreement five (5) days in advance each party may introduce an observer/observers to the meeting.

18.5.4 Classification Arbitration Board

The Arbitrator appointed under Article 18.5.3.1 may decide that a particular grievance should be referred to an Arbitration Board on receipt of the documents referred to in Article 18.5.3.3 or in Article 18.5.3.4 or at the hearing. Either party may recommend such referral in its written submission to the Arbitrator.

18.5.4.1 Arbitration Board Selection

The chairperson of the Arbitration Board shall be selected from the list included in Article 18.5.3.1 and the nominees selected pursuant to the provisions of Article 18.4.

18.5.5 Powers of Arbitrators in Classification Grievances

A sole Arbitrator or Arbitration Board hearing a classification grievance shall have the powers set out in Articles 18.4.4 to 18.4.7 inclusive.

18.5.5.1 Restrictions

The sole Arbitrator or Arbitration Board is restricted to determining whether the grievor's PDF accurately reflects their assigned job content (where disagreement exists) and to determining whether the grievor's job is properly evaluated pursuant to the CAAT Full-Time Support Staff Job Evaluation Manual.

The sole Arbitrator or Arbitration Board may not consider any examples of "regular & recurring" and/or "occasional" activities or responsibilities in excess of the number provided for in the PDF template.

Where the job content is disputed, each of the grievor and the College may submit the number of "regular & recurring" and/or "occasional" activities or responsibilities provided for in the PDF template.

19. DURATION

This Agreement shall continue in full force and effect until the 31st day of August, 2028 and shall continue automatically thereafter for the annual periods of one (1) year each unless either party notifies the other in writing of its desire to amend or modify the Agreement.

Notice to bargain shall be in accordance with the *Colleges Collective Bargaining Act, 2008,* and following receipt of notice to bargain the parties shall meet within thirty (30) days following such notice or such other time as may be agreed to.

EXECUTED at TORONTO, ONTARIO, 02 February 2026 | 11:00 PM EST

For the College Employer Council (CEC) with respect to and on behalf of Colleges of Applied Arts and Technology

Signed by:
58AEE0167CDB4B9...
Pascal Bessette

Laperriere

DocuSigned by:
3F8370A05FED4BC...
Rachelle Perreault-Leveille

Jeremy Roy
DocuSigned by:
AB1EC2A7CCDF4C0...
Kim Watkins

Ian Wigglesworth
5811AA13F980475...
Ian Wigglesworth

Signed by:
Graham Lloyd

Signed by:
Peter McKeracher
Peter McKeracher

Signed by:
BF9125CB960149E...
Trish Appleyard

Bill Steinburg
DocuSigned by:
4710B926545640C...
Cathy Viviano

EXECUTED at TORONTO, ONTARIO, 02 February 2026 | 11:00 PM EST

For the Ontario Public Service Employees Union /
Syndicat des employés de la fonction publique de l'Ontario (OPSEU/SEFPO)

DocuSigned by:
Christine Kelsey
Christine Kelsey

Signed by:
E9846B710035410...
Veronica Attard

Bob Holder
Signed by:
Bob Holder

Signed by:
EDA3E5E1F63844F...
XiaoYan Wang

Signed by:
50CA9D0E1EA8452...
Shelley Gartshore

Dan Brisson, CD

Signed by:
Dana Leaman
81E9394E553C474...
Dana Leaman

1E03EFF165E0461...
Bryan Stamm

LETTERS OF UNDERSTANDING

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College Employer Council
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November 4, 2025
Original: December 20, 1977

Red Circle Rates

Certain employees within the bargaining unit as of September 1, 2025 enjoyed "red circle" rates paid due to special circumstances including transfers to positions within the bargaining unit. To the extent those special circumstances continue during the term of the Collective Agreement, the employees in question shall continue to enjoy such "red circle" rates and the cents per hour differential over their respective rates and the then current applicable wage rate for the payband shall apply, subject to the reduction (or elimination) of such red circle rates by the lesser of 10 cents per hour or the elimination of such "red circle" rate, effective from September 1, 2025.

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November 4, 2025
Original: December 18, 2003

Stand By

This will confirm, as discussed during negotiations, that a College and its Local Union may enter into a local agreement regarding stand-by.

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November 4, 2025
Original: September 22, 2005

Letter of Intent – Article 5.2

The Full-Time Support Staff Collective Agreement now provides an 18-hour formula, under Article 5.2, for time off for Local Union business at Colleges with Full-Time Support Staff complements of 350 or more. This will confirm our understanding that Mohawk College and Northern College will be considered to be Colleges to which this formula will apply for the duration of this Agreement.

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November 4, 2025
Original: August 27, 1981

Less Than 12 Months Positions

It is recognized that the Colleges have positions within the bargaining unit from time to time that, because of the nature of the service rendered, require staffing for less than twelve (12) months a year. In such a case, where less than full time employment is identified prior to the time of hiring such employees, the College may effect a layoff of such employees for a period of up to but not exceeding three (3) months in any employment year without regard to the provisions of the Collective Agreement. Notwithstanding the foregoing, seniority and service shall accumulate for all purposes under the Collective Agreement during such period of layoff. This provision shall have no application where the employee in lieu of layoff hereunder has been granted a leave of absence in which case Article 14.2 shall have application.

Prior to posting such a position, the College shall notify the Local Union of the circumstances and, where the Local Union requires discussion and explanation as to the basis for such a position being reduced to less than a twelve (12) month basis, it may request a meeting with the College, at which time a full explanation of the circumstances surrounding the designation of the position shall be given.

The Colleges shall provide Less than 12 Month employees with the option of continuing their insured benefit coverage during the period of annual lay-off provided the employee pays 100% of the premiums.

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November 4, 2025
Original: October 1, 1989

Childcare

The parties agree that it is important to encourage opportunities for childcare for members of the Ontario college community.

Individual Colleges are encouraged to discuss with their Local Union related issues at the local level.

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November 4, 2025
Original: June 23, 1983

VDT & EERC

This will record certain understandings reached during negotiations for a renewal of the Full-Time Support Staff Collective Agreement, with respect to the new Article 13.4.

Where the Union College/Campus Committee is unable to reach agreement concerning additional employees to be affected by Articles 13.4.2 and 13.4.3, it is understood that either the College or the Local Union can refer the matter to the Employee/Employer Relations Committee for further discussion.

It is also understood that the Colleges will provide the Local Unions, on request, reasonable information respecting the locations of VDT equipment in use by employees in the bargaining unit in the Colleges, and the classifications of employees engaged in its use. Such requests shall be made within sixty (60) days after ratification of the Agreement and the Colleges will respond without undue delay.

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November 4, 2025
Original: October 1, 1989

Long Term Disability

This is to confirm the understanding reached at negotiations that the CEC agrees to amend the Long Term Disability Plan such that the definition of "total disability" for the first two year period during which benefits may be payable shall mean the inability of the disabled employee to perform the duties of their position. After the first two years that benefits may be payable, "total disability" shall mean the inability to perform the duties of any position for which the employee is suited by training or experience.

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November 4, 2025
Original: October 2, 2008

Layoff/Recall Process – Bumping

For clarity, the parties agree that the following illustrative examples demonstrates the general sequence of assignment which occurs pursuant to Article 15.4.3, after March 1, 2007.

Illustrative Example 1:

Assuming that an employee in payband C is to be laid off and no vacant position exists in payband C, the employee is first considered to replace the most junior employee in their payband. If the employee cannot satisfactorily perform the core duties and responsibilities of the job, then they are considered to replace the next most junior person in their payband, and so on. Once all positions in the employee's payband that are held by more junior employees are considered, and it is determined that the employee cannot satisfactorily perform the core duties and responsibilities of the job, vacancies in payband B are considered. Assuming no suitable vacancies in payband B exist, the position held by the most junior employee in payband B is considered. If the employee cannot satisfactorily perform the core duties and responsibilities of the job, the position held by the next most junior employee in payband B is considered, and so on until all positions held by more junior employees in payband B are considered. If none are suitable, vacant positions in payband A are considered, etc. The employee will be assigned to the first position identified pursuant to this sequence for which they can satisfactorily perform the core duties and responsibilities of the job.

Illustrative Example 2:

Employee #1 is in a position evaluated at payband D and is grand-parented at payband E (wage) and payband F (Article 15). For bumping purposes, Employee #1's rights start at payband F. Following the sequence above, if a vacant position in payband F does not exist, then consideration is given to a position in payband F held by a more junior employee. If Employee #1 can satisfactorily perform the core duties and responsibilities of the position in payband F held by the junior employee (Employee #2), then Employee #1 is assigned to both that position and the appropriate wage rate in payband F. Employee #1 is no longer grand-parented for any purpose. Employee #2 is grand-parented at payband G (wage and Article 15). Therefore, for bumping purposes, Employee #2's rights start at payband G and the steps outlined above are followed. If Employee #1 cannot satisfactorily perform the core duties and responsibilities of any position in payband F, then vacancies in payband E are considered. Assuming no suitable vacancies in payband E exist, the position in payband E held by the most junior employee is considered. If Employee #1 cannot satisfactorily perform the core duties and responsibilities of the job, the position in payband E held by the next most junior employee is considered, and so on until all positions in payband E held by more junior employees are considered. If none are suitable, vacant positions in payband D are considered, etc. Employee #1 will be assigned to the first position identified pursuant to this sequence for which they can satisfactorily perform the core duties and responsibilities

of the job and the corresponding wage rate for that position. Employee #1 is no longer grand-parented for any purpose.

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November 4, 2025
Original: October 21, 1992

Job Postings – Other Colleges

This is to confirm the understanding reached at bargaining that in the event of a vacant position in the bargaining unit which a College advertises outside the College in a newspaper or other trade journal, the College will fax such positions to the Human Resources Director of all Colleges and OPSEU/SEFPO. The Human Resource Directors shall provide a copy to their Local Union President. At the time an employee is laid off and provided the individual chooses to retain recall rights, the College will assist the individual to prepare a portfolio in order to facilitate placement in appropriate vacancies. Such portfolios may include such things as a performance appraisal, resume, skills assessment, current PDF and circumstances which triggered the layoff. The College will send the portfolio to any College requested by the individual. The College agrees to consider portfolios in its possession for appropriate vacancies at its College which are advertised outside the College in a newspaper or other trade journal, for the duration of their recall rights.

Should the College with a vacancy hire an employee through the above process, then the employee shall retain all past service for purposes of benefit entitlement and vacation. It is understood such retention of service shall not be credited towards the probationary period or seniority. The College may start the employee at a step higher than the start rate on the appropriate payband.

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November 4, 2025
Original: November 14, 1991

Direct Operating Grants From The Ministry of Community and Social Services

The parties agree that prior to a College making the determination as to how it intends to allocate any Direct Operating Grant received from the Ministry of Community and Social Services for childcare centres, the College and the Local Union shall discuss such allocation at a meeting of the Union College/Campus Committee (Article 4.6).

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November 4, 2025
Original: November 16, 2000

Joint Transitional Committee

The parties agree to establish a Joint Transitional Committee to explore the potential impact of a directive from the Ministry of Colleges, Universities, Research Excellence and Security, which would displace five (5) or more Full-Time Support Staff employees due to:

a) the creation of a new College;

b) a College merger;

c) a program relocation from one College to another;

d) other restructuring initiatives affecting multiple Colleges.

The parties recognize the principles and process established in Article 14.6 and further recognize that the specifics of some matters will only become apparent when the particular programs and services to be offered at the College have been identified.

The affected College(s) will strive to achieve the transfer of program(s) so that the transfer does not cause the layoff of employees as a direct result of the transfer.

The structure of the Joint Transitional Committee will be three (3) representatives chosen by OPSEU/SEFPO and three (3) representatives chosen by the CEC. Each party will ensure at least one (1) representative is from an affected College(s). Their mandate will be to:

a) review the principles and guidelines as specified within the Letter of Understanding - Transfer of Programs and Services from St. Lawrence and Algonquin Colleges to La Cité collégiale (as set out in the 1997 - 2000 Collective Agreement);

b) recommend the sequence for job postings and selection of affected employees;

c) recommend in a timely fashion the appropriate processes or mechanisms to address the Ministry's directive.

The Joint Transitional Committee will be replaced by a Task Group comprising of:

- one (1) person appointed by each affected College
- one (1) person appointed by the OPSEU/SEFPO Local at each affected College

- one (1) person appointed by the re-mandated College (where applicable)
- one (1) person appointed by OPSEU/SEFPO for the Local Union at the re-mandated College (where applicable)
- one (1) person appointed by the CEC
- one (1) person appointed on a provincial basis by OPSEU/SEFPO

Based on the recommendations from the Joint Transitional Committee and keeping in mind the requirements of the Agreement, the function of the Task Group will be to make recommendations:

a) to facilitate the movement of the bargaining unit members;
b) regarding strategies to achieve this objective;
c) to assist bargaining unit members who choose to transfer in adjusting;
d) to assist bargaining unit members who have not transferred with retraining or other strategies to deal with dislocations.

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November 4, 2025
Original: November 14, 1991

Automobile Insurance

This will confirm the parties' agreement that for those employees for whom the ownership/lease and use of an automobile is a condition of employment, the College will pay, to a maximum of one hundred and fifty dollars ($150.00) per year, the difference between private automobile insurance and commercial automobile insurance, if required by the employee's insurer. The employee will provide to the College proof of the differential from their insurer.

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November 4, 2025
Original: September 23, 1997

Conflict Between Booklet and Original Signed Version

It is understood that in the case of conflict between this booklet and the original signed Collective Agreement, the original signed document will prevail.

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November 4, 2025
Original: December 18, 2003

Grievance Scheduling

The parties agree that neither of the local parties can refuse a tentative arbitration date set by the Joint Grievance Scheduling Committee for any grievance more than two (2) times for the same case.

Subsequent requests for adjournments will be dealt with by the confirmed arbitrator as appropriate to the circumstances.

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November 4, 2025
Original: September 23, 1997

Article 15.5.1 – Severance Pay

Note: For the term of the 2025-2028 Collective Agreement, this Letter of Understanding is superseded by the NEW Letter of Understanding – Enhanced Severance Payments

For ease of reference in applying Article 15.5.1, the parties have agreed to summarize the current severance pay obligations under the *Employment Standards Act*, *2000* as of September 1, 1997, for employees with more than five (5) years of employment, recognizing that reference should always be made to the Act, and the Act is subject to amendments from time to time.

Employees with more than five (5) years of employment are entitled to receive severance pay equal to the employee's regular wages for a regular non-overtime work week times (x) the number of years of employment to a maximum of twenty-six (26) weeks. A partial year of employment is prorated by month.

Employees with more than five (5) years of employment who are laid off may elect to receive their severance entitlement pursuant to the Act. If such an election is made the employee is deemed to have waived their recall rights under the Collective Agreement.

If the employee chooses to retain recall rights, the employee's severance entitlement is paid out when the employee's recall rights have expired or at any time the employee chooses to waive recall rights.

If an employee who has chosen to retain recall rights is subsequently recalled, the severance payment is retained by the College.

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November 4, 2025
Original: November 16, 2000

Accrual of Service and Seniority

The parties agree that to the extent that Articles 8.1.10.1, 14.2, and 11.2 may contain limitations on the accrual of service, seniority or vacation, during periods of LTD or illness or while in receipt of WSIB benefits and these limitations are found to violate the *Ontario Human Rights Code*, the employer agrees to hold the Union harmless from any penalties or damages that may be assessed against the Union as a result of such finding.

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November 4, 2025
Original: September 23, 1997

Clarification Regarding the Use of the Word "Persons"

It is agreed between the parties that the reason individuals are referred to as "persons" after being laid off, is to clarify that the rights that remain for such individuals are those that are specified in the agreement, and to avoid confusion as to the rights that "employees" enjoy such as vacation, benefits and holiday entitlement.

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November 4, 2025
Original: December 18, 2003

Return to Work

Every College shall have a Return-to-Work (RTW) policy within six (6) months from December 18, 2003 to support injured and ill employees in returning to work. Each policy shall contain the following:

- a statement of commitment that describes how the program will operate, which may include a permanent or ad hoc Return-to-Work Committee, consisting of representatives from the College and the Local Union
- strategies that support the statement of commitment and form a framework within which individual return-to-work cases are managed
- a description of roles and responsibilities for the various stakeholders involved in the RTW process
- a RTW process that outlines the steps to be followed in managing individual return-to-work cases, including a mediation component, if appropriate
- a communications and training component
- a process for regular reviews of the program

It is agreed that where a meeting as contemplated in this letter takes place by mutual consent, during regular working hours, representatives of the Local Union shall not suffer any loss of pay during regular working hours when required to leave their duties temporarily for the purpose of attending such a meeting. Time off to attend meetings shall not be unreasonably denied.

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November 4, 2025
Original: September 22, 2005

Implementation of the New Job Evaluation System

Time lines

The new job evaluation system will be in effect on March 1, 2007. During this time the following will occur:

- Human Resources staff and the Local Union will be trained by the Classification Review Committee (CRC) on the new system including directions on how to write a position description form (PDF)
- using the "train the trainer" model, Human Resources will train supervisors and employees on how to write a PDF
- all PDFs must be rewritten and evaluated using the new system
- CRC will issue the new payband structure and the Collective Agreement, which will be modified, where appropriate, to reflect the changes for the system

Implementation Guidelines

a) Determination of Payband

Using the new job evaluation system, the College will evaluate a position and determine the appropriate payband under the new structure. Using the incumbent's current hourly rate, the level assigned to the position will be the first level encountered that contains an hourly rate that is equal to or greater than the individual's current hourly rate.

Any position that is evaluated at a payband that does not contain an hourly rate equivalent to or higher than the incumbent's current hourly rate will retain the evaluated payband but the employee will be assigned the "grand-parented" or higher payband (definition follows).

b) Definition of "Grand-parenting"

The definition of "grand-parenting" for the purpose of determining an employee's payband and/or hourly wage for the implementation of the new system is:

- the position will retain the payband that was assigned through the evaluation process

- the incumbent's hourly wage rate will be grand-parented to the first payband that contains a hourly wage rate equivalent to or higher than the incumbent's current hourly wage rate

- for salary administration, pension and group insurance purposes, the incumbent will be treated at the grand-parented higher hourly wage rate. For example, for LTD purposes the grand-parented wage will be insured and if the employee does go off on LTD their monthly benefit will be based on the grand-parented payband.

- for the purpose of Article 15, the incumbent's rights will be treated at their grand-parented payband and not the payband of the position. For example, bumping rights will begin at the payband of the employee and not the payband of the position. In some cases, the payband that an employee is grand-parented at for salary administration purposes and Article 15 may be different. This will only happen in some unique circumstances when an employee is progressing through the wage grid. To determine an employee's "grand-parented" payband, use the maximum wage rate (4 year rate) of the employee's current payband to find the first payband that contains a hourly wage rate equivalent to or higher than the maximum wage rate of the incumbent's current payband.

- should an employee who is at a grand-parented payband, be reassigned through Articles 15 or 17.2, to another position (either to a higher or lower payband) then the employee will no longer be grand-parented and will be paid the wage rate appropriate for the position assigned. For example, if the employee is successful for a job competition to a position that has a wage rate either higher or lower, the employee will receive the wage rate for the position and will no longer be grand-parented. Note - this would not apply to temporary assignments contemplated under Article 17.3.

- when the position becomes vacant - both it and the employee who is newly assigned to it will be paid at the appropriate payband rate the position has been evaluated at.

c) Determination of Payband for Existing Red Circle, Swan or Grand-parented Employees

Outlined below are the steps to be followed when determining the payband and wage rates for individuals who are currently red-circled, swan rated (individuals in special computer classifications due to a 1987 arbitration decision) or grand-parented.

1. The "red-circle amount" is the difference between the hourly wage in Appendix E of the current Collective Agreement for the employee's payband and the hourly rate the College is paying the incumbent in the position.

2. Determine the appropriate level and hourly rate following the instructions outlined in a) above.

3. If the new rate is lower than the sum of the "red-circle amount" and the previous payband hourly wage, then that current hourly rate does not change (i.e. no increase to the employee's hourly wage) but the red-circle amount is reduced by the difference between the new hourly rate and the previous hourly rate. (see Example 1 below)

4. If the new rate is higher than the sum of the "red-circle amount" and the previous payband hourly wage, then that becomes the wage and the individual is no longer red-circled. (see Example 2 below)

   Existing System:
   Incumbent's currently hourly rate is $18.19
   The payband hourly rate is $15.69

Therefore, the "red-circle amount" is $ 2.50

New System (after position evaluated):

Example 1	
Payband hourly rate for the NEW system is	$15.75
Incumbent's hourly rate remains at	$18.19
"Red-circle amount" is	$2.44 (only the red-circle amount is reduced)
Example 2	
Payband hourly rate for the NEW system is	$18.20
Incumbent's hourly rate increases to	$18.20
"Red-circle amount" is	$0 (no longer red-circled)

5. The "red-circling" provisions in the Collective Agreement will continue to apply to these individuals. There is no pyramiding of the "red-circling" and "grand-parenting" provisions.

d) Progression

If the level of the hourly wage rate assigned above (using (a) or (c)) is less than six (6) or the "4 year" rate, then the incumbent will be able to progress through the levels in accordance with Article 7.3.

Determination of the "progression" or "anniversary" date:
- if prior to the implementation date, the incumbent is progressing through the wage grid then the "progression" or "anniversary" date will remain unchanged; however,
- if the incumbent is at the maximum hourly wage rate, then the "progression" or "anniversary" date will be the effective date of the new system.

e) Moratorium of Classification Grievances

Effective September 22, 2005, the CRC will issue a moratorium on both reclassification requests and classification grievances being filed. This will remain in effect until March 1, 2007.

Any reclassification requests or classification grievances in process before this date can continue and classification arbitrations will be scheduled as needed.

f) Article 6.1.2.2 Forty (40) Hours per Week

With the introduction of the new job evaluation system, job families will no longer be associated with Full-Time Support Staff positions. If, prior to the implementation of the new system, an employee (hired before September 1, 1997) was assigned forty (40) hours per week, that employee will not have their hours reduced unless the employee agrees or they are the successful applicant for a position with fewer hours. The intent is not to disadvantage employees who were previously covered by this Article prior to the introduction of the new job evaluation system.

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November 4, 2025
Original: October 4, 2011

Mobilizer Leave

The Union may at its discretion require up to four (4) employees from the college system be granted a leave of absence with pay, commencing ninety (90) days before the expiration of the collective agreement until ratification, for the purpose of assisting the Union in advising and educating the members with respect to the collective bargaining process and the issues in bargaining. The Union shall reimburse the College for all pay during such leaves.

The Union will advise the Directors of Human Resources of the affected colleges, with copies to CEC, of the name of such employees, as soon as practical, and in any event at least twenty-one (21) days prior to the commencement date of the leaves. No more than one employee shall be released from a particular college.

Such employees will be given access to colleges with the prior approval of the particular college's Human Resources Director which approval will not be unreasonably denied.

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November 4, 2025
Original: September 1, 2018

Pregnancy and Parental Leave

In addition to the changes agreed upon in Article 12.6, in the event the *Employment Standards Act, 2000* is amended to provide an extension to parental leave, the parties will attempt to agree on changes to Article 12.6 to permit the top up to be spread over the extended leave period at a reduced rate, provided that this does not result in the College paying, in total, a greater amount of top up than it would pay if the leave was not extended and is in compliance with legislative requirements. If the parties are unable to agree on the language, the issue can be referred to binding arbitration before a mutually agreeable arbitrator who will have no jurisdiction to make a decision inconsistent with the preceding sentence.

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November 4, 2025
Original: September 1, 2018

Notification of Contracting Out

Except in the case of an emergency or in the case of work or services already contracted out, if the College decides to contract out work or services which are being performed by employees at the commencement date of this Agreement, the College will notify the Local Union. At the Local Union's request, the parties shall meet within 5 working days to discuss the contracting out prior to the College entering into an agreement with the contractor. In the event the College proceeds with the contracting out, it will comply with Article 15.8 if that Article is applicable.

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November 4, 2025
Original: September 1, 2022

Bill 124

Should Bill 124 - *Protecting a Sustainable Public Sector for Future Generations Act, 2019* be found unconstitutional by a court of competent jurisdiction or the legislation is either repealed or amended in such a way as to shorten the moderation period or increase the 1 percent restraint measures prior to the expiry of the Collective Agreement, the parties shall meet within 60 days of the decision to negotiate a remedy, if any, for bargaining unit employees impacted by the legislative restraints.

Further, the parties agree to invite William Kaplan, Mediator to assist the parties.

Where OPSEU/SEFPO has applied for an exemption from Bill 124 on behalf of Full-Time College Support Staff, the parties agree that if the exemption is granted, the parties shall utilize the same process as outlined above.

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November 4, 2025
Original: September 1, 2022

Bereavement Leave, Article 12.3

The purpose of this letter is to clarify the intent of the new gender-neutral language used in Article 12.3.

The term "sibling of an employee's parent" was formerly described in Article 12.3 as "employee's aunt or uncle".

The term "the child of an employee's sibling" is intended to be the gender-neutral description of an employee's niece or nephew.

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November 4, 2025
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Commitment to Equity, Diversity, and Inclusivity (EDI)

The parties agree that the learning experience is enhanced when the workplace environment reflects the communities it serves. The parties are committed to promoting a workplace of diversity, equity and inclusivity, and to discussing strategies, initiatives and training programs at the Union College/Campus Committee so that recommendations may be made in an effort to enhance the workplace in an effective and meaningful way.

The Union College/Campus Committee shall share its initiatives to EERC annually.

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November 4, 2025
Original: September 1, 2022

Indigenous Commitment

The parties acknowledge the traditional territories upon which each college is located and recognize the legacy and longstanding relationship that Indigenous peoples have with these territories throughout the province.

The parties recognize a shared commitment to removing barriers to employment for Indigenous peoples. The College and the Local Union will discuss mechanisms to accomplish this objective. Such matters shall be raised and considered at the Union College/Campus Committee.

The Union College/Campus Committee shall share its initiatives to EERC annually.

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CCBA (*Colleges Collective Bargaining Act, 2008)*

During the 2025 round of negotiations, the parties discussed the work of the bargaining unit as it applies to full-time support staff. The parties acknowledge that the *Colleges Collective Bargaining Act, 2008* (Schedule 1 sections 3 and 5) describes those included and excluded from the full-time support staff bargaining unit. The parties reserve their rights.

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November 4, 2025

Vacation Carry-Over Scheduling and Use Before August 31, 2027

There are employees with vacation carryover that exceeds the limits set out in Article 11.6. The parties agree that this carryover shall be scheduled by the College and taken by the employee no later than August 31, 2027.

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November 4, 2025

Enhanced Severance Payments

Effective November 4, 2025 (and superseding Article 15.5.1 and LOU – Article 15.5.1 – Severance Pay for the term of this agreement). Applies to all notices of layoff on or after November 4, 2025 and before or on August 31, 2028:

15.5.1 General

Where an employee (other than one who is affected by contracting out and who elects to receive severance pay pursuant to Article 15.5.2) is laid off and has:

- less than five (5) years service and within twenty-one (21) calendar days of receipt of notice of layoff elects to waive all rights of recall under the Agreement, they shall receive severance pay equal to one (1) week pay at their current salary for each completed year of service multiplied by 1.5.

  Example: For illustration purposes only, an employee with four (4) years of completed service will be entitled to severance pay equal to four (4) weeks' pay at current salary x 1.5.

- more than five (5) years service they will have their severance pay treated pursuant to the provisions of the Employment Standards Act., 2000, multiplied by 1.5, to a maximum of thirty-two (32) weeks. If the employee chooses to retain recall rights, the employee's severance entitlement is paid out when the employee's recall rights have expired or at any time the employee chooses to waive recall rights.

  Example: For illustration purposes only, an employee with fourteen (14) years of completed service will be entitled to severance pay equal to fourteen (14) weeks' pay at current salary x 1.5. However, an employee with twenty-four (24) years of completed service would receive a maximum of thirty-two (32) weeks' severance pay.

Acceptance of severance shall not terminate the right to retraining under Article 15.7.

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APPENDIX A
Joint Insurance Committee Full-Time Support Staff

1. Name of Committee

The Committee shall be referred to as the Joint Insurance Committee (Full-Time Support Staff).

2. Purpose of the Committee

The purpose of the Committee is to facilitate communications between the CEC and OPSEU/SEFPO on the subject of group insurance applicable to the Full-Time Support Staff Bargaining Unit, including Basic Life, Supplementary Life Insurance, Extended Health Insurance, Long Term Disability Insurance, the Dental Plan and such other negotiated benefits that may, from time to time, be included in the Group Insurance Plan.

Nothing herein shall prevent this Committee from meeting jointly with any comparable Committee, if established, concerning the Academic Staff Bargaining Unit should it be mutually agreed between this Committee and such other Committee.

It is understood that the group insurance benefits to be provided to employees and the cost sharing arrangements shall be as set out in the applicable Collective Agreement and the matters for consideration by this Committee shall be only as set out in these terms of reference.

3. Composition of the Committee

The Committee shall be composed of an equal number of representatives from the CEC and OPSEU/SEFPO with not more than eight (8) representatives in total.

At meetings of the Committee each party may be accompanied by up to two (2) resource persons to provide actuarial or other technical advice. Additionally, when necessary, representatives of the insurance carrier shall attend meetings to provide information but shall not act as resource persons for either party.

4. Duties of Committee

The duties of the Committee shall consist of the following:

(i) development of the specifications for the public tendering of any negotiated benefits which may be included in the Group Insurance Plan (to cover the bargaining unit only);

(ii) consideration and examination of all tenders submitted in response to the specifications for tender and preparation of a report thereon;

(iii) recommendation to the CEC on the selection of the insurance carrier or carriers to underwrite the Group Insurance Plans;

(iv) consideration and recommendation to the CEC on the renewal of existing contracts of insurance upon expiry;

(v) review of the financial reports on the Group Insurance Plan; and

(vi) review of contentious claims and recommendations thereon, when such claim problems have not been resolved through the existing administrative procedures.

(vii) recommend to the CEC when an ad hoc adjustment should be implemented to increase the monthly benefit level of existing LTD claimants. It is understood that:

(a) the cost of the adjustment must be financed from funds held in the LTD Deposit Accounts which are in excess of 25% of annualized premium and the cost must be shared in accordance with the premium sharing arrangement in effect on the date of the ad hoc adjustment; and

(b) in determining the viability of such an adjustment, the Committee must exercise prudent financial planning to ensure the cost of the ad hoc adjustment combined with reasonably predictable costs of future experience trends will not jeopardize the financial stability of the Plan or result in additional premiums to be payable in the current or immediately following Plan Year.

(viii) Management will be responsible for the recording of the public and in-camera Minutes that will represent the major subject matters discussed.

The draft Minutes will be distributed to all Committee members within a reasonable time following each meeting. At the next meeting of the JIC, the Committee will move for approval of the Minutes with any agreed upon amendments, additions or deletions to the Minutes. The Minutes shall be signed by the Co-Chairpersons of the Committee.

Each party may distribute copies of the approved public Minutes to their respective principals as they see fit. The approved in camera minutes will not be posted or distributed outside of the Committee.

5. Specifications for Public Tender

When specifications for public tender are required to obtain the services of an insurance carrier, the duties of the Committee shall be to:

(a) develop and recommend specifications for tender;

(b) consider and examine all tenders submitted in response to the specifications;

(c) make a recommendation to the CEC with respect to the selection of a carrier.

The specifications for tender will describe the benefits to be provided, the cost sharing arrangements, the past financial and experience history, the appropriate employee data, the format for the retention illustrations for each coverage, the financial reporting requirements, and other parameters as appropriate.

The tendering process will be conducted in accordance with the CEC's Procurement Policy. Tenders shall be entertained from any insurance carrier and such carrier may act solely on its own behalf or may arrange reinsurance as may be necessary.

The basis for recommendation of an insurance carrier will include the ability of the carrier to underwrite the Plan, compliance of carrier's quotation with the specifications for tender, the carrier's service capabilities and the expected long term net cost of the benefits to be provided.

6. Policy Renewals

Following receipt of an existing insurance carrier's proposal for renewal of an insurance contract, the Committee shall:

(a) examine and analyze the proposal, assessing the completeness, fairness and validity of the proposal;

(b) assess the funding methods employed in the insurance policy;

(c) assess and monitor the deposit accounts;

(d) suggest and discuss alternative proposals and funding methods with the carrier; and

(e) make recommendations to the CEC with respect to acceptance of the carrier's renewal proposals, funding methods and deposit account administration.

The basis for recommendations for renewal will take into account the level of service provided by the carrier and the expected long term net cost of benefits.

7. Experience Review

The Committee will also meet as required to review the financial experience under the Plans. The specifications for tender will describe the information to be included in the financial statements to be prepared by the insurance carrier(s). These statements will include paid premiums, paid claims, changes in reserve requirements for open and for unreported claims, incurred claims, the retention elements of commissions, taxes, administrative expenses, contingency reserve charges and interest credits on claims and other reserves. The Committee shall request the insurance carrier(s) to provide such additional information as may be necessary.

8. Recommendations

If the Committee fails to agree on any recommendation to the CEC that is contemplated by these Terms of Reference, the members of the said Committee nominated by the CEC and OPSEU/SEFPO may each make a recommendation in writing to the CEC, supported by reasons for their respective recommendations.

It is understood that the CEC at all times retains the right to select whatever carrier(s) (to underwrite the Group Insurance Plans) it may consider in the best interest of the employees and Colleges and, in so doing, is under no obligation to select a carrier(s) that may be recommended by the Committee.

9. Benefits Entitlement Booklet

There shall be a change log in the Benefit Entitlement Booklet documenting all amendments.

APPENDIX B
Inclusion Procedures

The parties recognize that the question of whether or not a particular person is or is not a member of the bargaining unit has not traditionally been dealt with at the bargaining table, and has normally been resolved by direct discussion between the CEC/College and the Union or by the Ontario Labour Relations Board based on the existing duties and responsibilities of the person in question.

The following conditions are applicable to persons who are employed by a College of Applied Arts and Technology (hereinafter called "the College") in positions designated as Administrative Staff or otherwise excluded from the Full-Time Support Staff Bargaining Unit and who are found to be bargaining unit employees as a result of specific decisions of the Ontario Labour Relations Board or by agreement of the CEC/College and the Union:

1. Terminology

(i) All references herein to Articles, Sections and Appendices shall refer to Articles, Sections and Appendices of the Collective Agreement for Colleges of Applied Arts and Technology Full-Time Support Staff Employees.

(ii) "Employee" or "Employees" shall refer to persons who are employed by a College in positions designated as Administrative Staff or otherwise excluded from the Full-Time Support Staff Bargaining Unit and who are found to be Bargaining Unit employees as a result of specific decisions of the Ontario Labour Relations Board or by agreement of the CEC/College and the Union.

2. Application

This Appendix shall apply to any persons included in the Full-Time Support Staff Bargaining Unit by decisions of the Ontario Labour Relations Board or agreement between the CEC/College and the Union, from January 1, 1980, and thereafter.

3. Determination of Payband

Using the Full-Time Support Staff job evaluation system, the College shall determine the appropriate payband for the duties and responsibilities assigned to the position.

It is understood that the employee may challenge the propriety of such assignment under Article 18.5 and is limited to a claim that the assignment should have been to another payband.

4. Determination and Treatment of Wages

(a) If the employee's hourly rate calculated in accordance with Article 6.1 at the date of inclusion is less than or within the range as set out in Appendix E for the appropriate payband, placement will be at the step which is appropriate in accordance with the length of service in the position with the College; it will not be less than the hourly rate applicable at the date of inclusion.

(b) If the employee's hourly rate calculated in accordance with Article 6.1 at date of inclusion is above the range as set out in Appendix E for the appropriate payband, placement will be

at maximum with no reduction in hourly rate, but that rate calculated is red circled and is subject to reduction according to future red circle agreements.

(c) It is understood that reference to "date of inclusion" in this Appendix means the date of the Ontario Labour Relations Board decision unless extended by agreement of the parties or date of any agreement by the CEC/College and the Union.

5. Seniority

Employees will be accorded full seniority based on length of service with a College calculated in accordance with Articles 14.1 and 14.2.

6. Vacation

(a) Employees will retain vacation entitlement earned as Administrative Staff or an otherwise excluded employee for the vacation year in which the date of inclusion occurs and one (1) additional vacation year and vacation pay shall be in accordance with Articles 11.2, 11.3 and 11.4.

(b) Effective June 30th of the vacation year thereafter and of each subsequent vacation year, there will be a reduction in vacation entitlement of one (1) day until such vacation entitlement coincides with entitlement under the effective Collective Agreement for CAAT Full-Time Support Staff and vacation pay shall be in accordance with Articles 11.2, 11.3 and 11.4.

(c) For the purpose of calculating an employee's vacation entitlement under Article 11, it is agreed that the employee will receive credit for one hundred per cent (100%) of their continuous service in the College.

7. Basic Life Insurance, Extended Health Insurance, Dental Insurance, Supplemental Life Insurance, Dependent Life Insurance, Short Term Disability Plan, Long Term Disability Insurance, Vision and Hearing Care Plans.

These Full-Time Support Staff Plans are effective the first day of the third calendar month following date of inclusion.

8. All other terms and conditions of employment

Except as specifically referred to herein, employees shall not be entitled to any terms or conditions contained in the Collective Agreement for CAAT Full-Time Support Staff employees prior to the date of inclusion.

9. Union Dues

Union dues deductions will commence from the date of inclusion.

APPENDIX C
Averaging of Hours

1. The number of hours of work per week prescribed shall be computed as a weekly average over six (6) months where the duties of an employee require that they work more than the number of hours per week normally prescribed at regularly recurring times of the year, or that the number of hours per week be normally irregular.

2. The averaging period for the employee will conform to the six (6) month period which reflects the work cycle of that employee, and will be reported to the Union.

3. Periods of employment of less than six (6) months in an averaging period, e.g., due to appointment, transfer, separation, etc., will be pro-rated.

4. For the six (6) month averaging period, the hours of work required are nine hundred and ten (910) hours, which corresponds to a thirty-five (35) hour week, nine hundred and forty-two and one-half (942½) hours which corresponds to a thirty-six and one-quarter (36¼) hour week, nine hundred and seventy-five (975) hours corresponding to a thirty-seven and one-half (37½) hour week or one thousand and forty (1,040) which corresponds to a forty (40) hours week.

5. A record will be maintained for each employee affected showing a running total of hours worked. When an employee's accumulation of hours worked at the end of each three (3) month period is viewed by the College as excessive, they may be required to take time off, on an hour-for-hour basis, in order to bring their hours accumulation into line with the hours requirement for the averaging period. In such a case, they will be given reasonable notice where circumstances permit, of any such time off.

   At the end of the averaging period, any excess hours standing to the employee's credit over and above the stipulated hours requirement will be considered as overtime and multiplied by one and one-half (1½) to show the employee's "overtime credit" for pay or compensating leave purposes.

6. The employee shall be paid for their overtime credits. Such payments shall be made at the hourly rate they were receiving on the last day of the averaging period.

7. Notwithstanding Paragraph 6, compensatory time off may, however, be substituted for payment of overtime credits where there is insufficient work for an employee to the extent that their presence is not required for a period of time. In such a case, the College has the authority to direct that the employee take time off rather than receive pay for their overtime credits, and such time off shall be taken during the first six (6) months of the next averaging period at a time mutually agreeable between the employee and the College.

8. Any hours worked on a holiday or other day that is not a regular working day for the employee will be treated as overtime and converted to "overtime credits" by multiplying by one and one-half (1½) and recorded for each employee. The employee shall be paid for all such overtime credits at least quarterly and at the rate they were receiving when the overtime was worked.

APPENDIX D
Temporary Employees

1. The terms of this Appendix apply to persons employed on a casual or temporary basis to replace bargaining unit employees absent due to vacation, sick leave or leaves of absence.

2. The rate to be paid to such an employee shall be the appropriate wage rate applicable to the position of the replaced employee, subject to progression steps applicable to the replacing employee, where appropriate.

3. The replacing employee shall be subject to the deduction and remittance of Union dues, as provided in Article 5.4 of the Agreement.

4. The Union shall be notified at the commencement of employment, and upon the expiry of the term of employment.

5. In addition to the hourly rate of pay, the employee shall receive an additional eight per cent (8%) in lieu of all fringe benefits, including vacation.

6. The employee shall be entitled to the provisions of Articles 4.4, 6.6, 7.5 and 10 of the Agreement.

7. The employee may be released by the College before the termination date of any term of employment, for replacement need changes or operational requirements.

8. Employees covered by this Appendix are entitled to utilize the grievance procedure to enforce the rights contained in this Appendix.

9. If an employee is appointed to a regular bargaining unit position after September 23, 1997, they shall be credited with full seniority, after completion of the probationary period, based on full credit for Appendix D service calculated at a day's seniority for each day worked (261 days of work equals one (1) year). When an Appendix D employee is appointed to a regular bargaining unit position and has previous service as a part-time Support Staff employee, seniority shall also be credited in accordance with Article 14.3.

10. For the purposes of job competitions, employees who have six (6) months consecutive service with the College shall be deemed internal applicants for the purposes of Articles 17.1.1, 17.1.1.1, 17.1.2.1 and 17.1.5.

11. No other provision of the Collective Agreement shall apply to Appendix D employees unless otherwise stated in this Appendix.

12. If an employee is the successful internal candidate for a position which they held immediately prior as an Appendix D, then the College shall waive the probationary period set out in Article 14.1 provided that the employee worked at least 910 hours in the Appendix D position.

APPENDIX E
EFFECTIVE SEPTEMBER 1, 2025

HOURLY WAGE RATE
$1.05 General Wage Increase

Payband	Start	6 month	1 year	2 years	3 years	4 years
A	23.21	23.91	24.55	25.28	25.99	26.72
B	24.51	25.26	25.97	26.72	27.48	28.30
C	26.01	26.80	27.62	28.38	29.21	30.07
D	27.82	28.57	29.43	30.25	31.18	32.06
E	29.83	30.69	31.58	32.47	33.47	34.42
F	32.10	33.00	33.99	35.02	36.02	37.04
G	34.60	35.66	36.63	37.71	38.86	39.93
H	37.34	38.47	39.58	40.75	41.91	43.18
I	40.39	41.56	42.77	44.01	45.32	46.64
J	43.61	44.84	46.18	47.52	48.95	50.39
K	47.13	48.50	49.92	51.41	52.90	54.48
L	50.93	52.42	53.96	55.53	57.17	58.84

APPENDIX E
EFFECTIVE SEPTEMBER 1, 2026

HOURLY WAGE RATE
2.0% General Wage Increase

Payband	Start	6 month	1 year	2 years	3 years	4 years
A	23.67	24.39	25.04	25.79	26.51	27.25
B	25.00	25.77	26.49	27.25	28.03	28.87
C	26.53	27.34	28.17	28.95	29.79	30.67
D	28.38	29.14	30.02	30.86	31.80	32.70
E	30.43	31.30	32.21	33.12	34.14	35.11
F	32.74	33.66	34.67	35.72	36.74	37.78
G	35.29	36.37	37.36	38.46	39.64	40.73
H	38.09	39.24	40.37	41.57	42.75	44.04
I	41.20	42.39	43.63	44.89	46.23	47.57
J	44.48	45.74	47.10	48.47	49.93	51.40
K	48.07	49.47	50.92	52.44	53.96	55.57
L	51.95	53.47	55.04	56.64	58.31	60.02

APPENDIX E
EFFECTIVE SEPTEMBER 1, 2027

HOURLY WAGE RATE
2% General Wage Increase

Payband	Start	6 month	1 year	2 years	3 years	4 years
A	24.14	24.88	25.54	26.31	27.04	27.80
B	25.50	26.29	27.02	27.80	28.59	29.45
C	27.06	27.89	28.73	29.53	30.39	31.28
D	28.95	29.72	30.62	31.48	32.44	33.35
E	31.04	31.93	32.85	33.78	34.82	35.81
F	33.39	34.33	35.36	36.43	37.47	38.54
G	36.00	37.10	38.11	39.23	40.43	41.54
H	38.85	40.02	41.18	42.40	43.61	44.92
I	42.02	43.24	44.50	45.79	47.15	48.52
J	45.37	46.65	48.04	49.44	50.93	52.43
K	49.03	50.46	51.94	53.49	55.04	56.68
L	52.99	54.54	56.14	57.77	59.48	61.22

APPENDIX F
Joint Classification Committee

1. Name of Committee

The Committee shall be referred to as the Joint Classification Committee (JCC).

2. Purpose of the Committee

The purpose of the JCC is to discuss and where mutually agreed upon, resolve issues pertaining to:

a) system-wide matters relating to the CAAT Full-Time Support Staff Job Evaluation System;

b) guidelines and procedures for training including matters contained in Article 18.5.3.1 Arbitrators of the Full-Time Support Staff Collective Agreement;

c) revisions to the job evaluation manual and the guide on how to write PDFs.

3. Composition of Committee

a) The JCC will be composed of an equal number of representatives from the Union and Management with not more than eight (8) representatives in total.

b) Each party will be responsible for the appointment of its members and may appoint one (1) additional resource person.

c) Each party shall designate a Co-Chair who will be responsible for the coordination of the meetings.

d) Notwithstanding 3 a), either party may invite one (1) or more persons to provide expertise and advice on specific items, or as an observer or trainee, provided prior agreement of the other party is secured.

4. Meetings

a) The frequency of the meetings shall be established by the JCC. The JCC shall endeavour to meet on a monthly basis.

b) Management will be responsible for the recording of the Minutes that will represent the major subject matters discussed. The approved Minutes shall be signed by the Co-Chairs.

5. Duties of the Committee

a) The JCC will primarily concern itself with matters that have system-wide application and other items as mutually agreed upon.

b) The JCC will not address items that are the subject of a formal grievance.

c) The JCC will be responsible for updating the job evaluation manual and the guide on how to write PDFs and the distribution of such updates.

d) The JCC will review the need for a payband to be added or deleted from the job evaluation system. A joint recommendation must be developed and submitted to the respective Bargaining Teams outlining the suggested change and supporting rationale.

e) The JCC will develop guidelines and procedures for joint training pertaining to the job evaluation system and shall provide orientation to the Expedited Arbitrators in accordance with Article 18.5.3.1 in the Full-Time Support Staff Collective Agreement.

APPENDIX G
Summer Student Workers

1. The terms of this Appendix apply to students employed temporarily for more than twenty-four (24) hours per week during the period of mid-April to the last Friday before Labour Day.

2. No bargaining unit employee shall be laid off or have their normal hours or weeks of work reduced as a direct result of the hiring of these students.

3. The College shall notify the Local Union of both the start and planned termination dates of employment.

4. The students shall be subject to the deduction and remittance of Union dues, as provided in Article 5.4 of the Agreement.

5. The students may be released by the College before the termination date.

6. The students shall be paid an hourly wage rate not less than the general minimum wage set out in the *Employment Standards Act, 2000.*

7. The students shall be entitled to the provisions of Articles 6.6 and 7.5 of the Agreement.

8. Students will be granted holidays/holiday pay in accordance with Article 10 except that the holidays shall be limited to Good Friday (if it occurs after the start date), Victoria Day, Canada Day and Civic Holiday. Articles 10.2 and 10.7 shall not apply.

9. Students covered by this Appendix are entitled to utilize the grievance procedure to enforce the rights contained in this Appendix.

10. In addition to the hourly rate of pay, the student shall receive an additional four per cent (4%) in lieu of vacation.

11. No other provisions of the Collective Agreement shall apply to the students unless otherwise stated in this Appendix.

APPENDIX H
CAAT Retirees Group Insurance Advisory Committee

1. Name of Committee

The Committee shall be referred to as the CAAT Retirees Group Insurance Advisory Committee.

2. Purpose of the Committee

The Committee acts as an advisory body and assists the CEC in ensuring the appropriate benefit design and cost effectiveness of the group insurance benefit plans available for all eligible retirees.

3. Composition of the Committee

The Committee will comprise:
- one (1) retiree appointed by OPSEU/SEFPO CAAT Academic
- one (1) retiree appointed by OPSEU/SEFPO CAAT Full-Time Support
- one (1) retiree appointed by the Ontario Colleges Administrative Staff Association (OCASA)
- three (3) management representatives appointed by the CEC
- one (1) resource person appointed by OPSEU/SEFPO
- one (1) resource person appointed by OCASA
- one (1) resource person appointed by the CEC

Additionally, when necessary, representatives of insurance carriers shall attend meetings to provide information but shall not act as resource persons for any of the parties.

4. Meetings

The Committee will meet at least once a year to review the financial experience of the retiree plans. Additional meetings may be scheduled by the Committee to address specific issues.

5. Duties of the Committee

The Committee will be responsible for developing recommendations based on consensus (agreement and/or abstinence constitutes consensus) for the CAAT retirees' group insurance plans. The duties of the Committee are to:

a) facilitate communication between OPSEU/SEFPO, OCASA, the Colleges, the CEC, and retirees;

b) understand the retiree benefit plans;

c) consider the impact of proposed new benefit improvements or the deletion or modification of existing benefits and recommend to the CEC any change to the retiree group insurance benefit plans;

d) monitor the administration of the retiree plans;

e) assist in the design of the communication materials;

f) review contentious claims and make recommendations when such claim problems have not been resolved through the existing administrative procedure;

g) review proposed premium rate renewals and make recommendations to the CEC.

6. Administration

a) Services of a consultant are to be paid from deposit funds;

b) Agreed upon committee expenses are to be paid from deposit funds.

APPENDIX I
Contracting Out

It is agreed that no bargaining unit member who has completed the probationary period will be released from the College's employ as a direct result of the College contracting out their work.

However, contracting out to an employer who will employ the employee with comparable terms and conditions of employment is not a breach of this Appendix.

An employee given notice of layoff or reassignment as a result of their work being contracted out may elect to take an unpaid leave of absence of up to twenty-four (24) months, in order to accept a job offered by the contractor. The employee may utilize the entitlements set out in Article 15.7.1 during this time. The leave will begin on the date that the employee commences employment with the contractor. If the employee wishes to return to the College, they must provide at least ninety (90) calendar days written notice of their intention to return at the end of the leave.

The College will then apply Article 15.4.3, as appropriate. If no position can be identified pursuant to Article 15.4.3, no new notice of layoff under 15.4.4.1 need be provided to the employee.

The College will not provide wages or benefits to the employee during the leave.

APPENDIX J

Employee/Employer Relations Committee Terms of Reference

1. Purpose

The parties agree to establish an Employee/Employer Relations Committee (EERC) in order to:

(a) Jointly make recommendations to the bargaining teams (CEC and OPSEU/SEFPO) concerning subjects of system-wide importance.

(b) Facilitate communications between Management and the Union at the provincial level in an unconstrained, yet official manner during the life of the Agreement.

(c) Preclude and resolve common problems during the life of the Agreement.

(d) Permit both parties, to enter negotiations with much of the groundwork completed.

2. Membership

(a) The Committee will be composed of equal representation not to exceed a total of ten (10) members (five (5) appointed by each party).

(b) Each party will be responsible for the appointment of its members and, where possible, consideration will be given to regional representation to assure the existence of a provincial cross section. The Union may appoint a Union Staff person as one (1) of its Committee members. The CEC may appoint a College President as one (1) of its Committee members.

(c) Each party shall designate a Co-Chairperson and they will be responsible for the co-ordination of the Committee meetings.

(d) Notwithstanding 2(a), either party may invite one (1) or more persons to provide expertise and advice on specific items, or as an observer or trainee, provided prior agreement of the other party is secured.

(e) Union members of the Committee may be released from duty without loss of pay for the purpose of attending meetings. Such leave of absence shall not be unreasonably withheld, recognizing the need of efficiency of operations of the College. The Union shall reimburse the College for fifty per cent (50%) of all pay during the leaves of absence granted hereunder. Union members who are not on duty will attend meetings on their own time. Travelling expenses and other expenses incurred by the Union members of the Committee will be borne by the Union.

3. Meetings

(a) The frequency of meetings shall be as established by the Committee. The Committee shall endeavour to meet on a monthly basis.

(b) The Committee will primarily concern itself with matters that have system-wide application and other items as mutually agreed upon.

(c) The Committee will consider matters of a Local College concern. It is understood that either party will inform the other party if an item is to be referred to the EERC. The Committee will attempt to resolve a particular concern within a time frame of three (3) meetings unless the Committee agrees further progress can be achieved.

Local College representatives may be requested by either party to attend an EERC meeting to provide clarification.

(d) The Committee will not address items that are the subject of a formal grievance.

(e) Management will be responsible for the recording of the Minutes that will represent the major subject matters discussed. The Minutes shall be signed by the Co-Chairpersons of the Committee.

The draft Minutes will be distributed to all members within a reasonable time following each meeting. The Union will contact the Management's Chairperson with any proposed amendments, additions or deletions to the Minutes so as to expedite the process of obtaining approval signatures.

Each party may distribute copies of the approved Minutes to their respective principals as they see fit. The approved Minutes will be posted on both OPSEU/SEFPO's and the CEC's website.

(f) It is recognized that the Committee is a recommending body and not an alternative to the collective bargaining process. When a consensus is reached concerning a recommendation the Committee shall forward that recommendation to the appropriate body (i.e. Negotiating Team/CEC/College/OPSEU/SEFPO). Both parties have the option of sending items on which there is no consensus to the party they deem appropriate. (This may be in the form of a written brief to the Negotiating Team/CEC/College/OPSEU/SEFPO. Submission should be made through the appropriate Co-Chairperson of the Committee).

4. General

The Terms of Reference shall be given effect by the signature of the officials of both parties including the President of OPSEU/SEFPO or their designate, and shall continue, subject to review by request of either party.

APPENDIX K

Initiatives/Opportunities

1. Definition

An Initiative/Opportunities position is a position within the Full-Time Support Staff bargaining unit, in which the established termination date is known at the time the position is created and forms part of the employment contract with the individual who is selected for the position.

2. Notification to Union

Prior to creating an Initiatives/Opportunities position, the College shall inform the Local Union of its intent to create an Initiatives/Opportunities position, its rationale and the termination date.

3. Union Representations

The College will hear any representations by the Local Union prior to implementing such a position, provided such representations are made promptly.

4. Initial Term

An Initiatives/Opportunities position may be up to twenty-four (24) consecutive months in duration.

If the position may exceed twenty-four (24) consecutive months, prior to posting the position, the College shall seek consent from the Local Union for the longer term and such consent shall not be unreasonably withheld.

5. Extensions

An Initiative/Opportunities position exceeding 24 consecutive months in duration may not be extended beyond its initial term without written agreement from the Local Union.

6. Posting of Initiative/Opportunities Position

All Initiative/Opportunities positions shall be posted pursuant to Article 17.1 and 17.1.1.

7. Posting of Resulting Vacancies

Should an existing full-time bargaining unit member be selected to fill an Initiatives/Opportunities position, the resultant vacancy shall be filled in accordance with Article 17.3.1 Temporary Postings.

8. Right to Return to Regular Position

An existing full-time bargaining unit member who is selected or assigned to fill an Initiatives/Opportunities position shall be paid in accordance with the appropriate wage rate for the position and shall continue to receive all the terms of the Collective Agreement to which they are

entitled. The employee will have the right to return to their regular position or its equivalent at the conclusion of the Initiative/Opportunities position.

9. Non-Replacement of Existing Positions

An Initiatives/Opportunities position will not be used to replace existing Full-Time Support Staff bargaining unit positions.

10. Non-Application of Article 15

All provisions of the Collective Agreement, except for Article 15, shall apply.

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